

Unit-I

Historical Development: The Indian Evidence Act, 1872 and Enactment of the Bharatiya Sakshya Adhiniyam, 2023

Historical Development of the Law of Evidence in India

Introduction

The law of evidence determines **what facts may be proved before a court and how they may be proved**. Without rules of evidence, courts cannot distinguish truth from falsehood. Evidence law is therefore regarded as the **backbone of judicial proceedings**, ensuring fairness, reliability, and consistency in both civil and criminal trials.

India followed different systems of evidence before the enactment of the **Indian Evidence Act, 1872 (IEA)**. With the advancement of technology and digital communication, the colonial-era legislation became inadequate, leading to the enactment of the **Bharatiya Sakshya Adhiniyam, 2023 (BSA)**, which came into force on **1 July 2024**, replacing the IEA while retaining most of its foundational principles and modernizing the treatment of electronic evidence.

Evolution of Evidence Law in India

I. Ancient India

During the Vedic and Dharmashastra period:

- Evidence was mainly governed by religious principles.
- Hindu law relied upon **Manusmriti**, **Yajnavalkya Smriti**, and **Narada Smriti**.
- Witnesses were expected to speak the truth under religious obligation.
- Oaths, ordeals (Divya), and community reputation were frequently used.
- Documentary evidence had comparatively less importance.

Features

- Religious basis of justice
 - Moral duty to tell the truth
 - Heavy reliance on witness testimony
 - No uniform codified rules
-

II. Muslim Period

During the Sultanate and Mughal period:

The law of evidence was governed by **Islamic Law (Shariat)**.

Main sources:

- Quran
- Hadith
- Ijma
- Qiyas

Important characteristics:

- Great importance was attached to oral testimony.
 - Witnesses had to possess good moral character.
 - Women and non-Muslims faced limitations in certain matters under traditional rules.
 - Documentary evidence remained secondary to oral testimony.
-

III. British Period

When the East India Company established courts, different communities were governed by different evidentiary rules.

Problems included:

- Lack of uniformity
- Conflicting customs
- Different rules for Hindus and Muslims
- Judicial inconsistency
- Delay in administration of justice

British administrators realized that a single uniform law was necessary.

Drafting of the Indian Evidence Act, 1872

The British Government appointed **Sir James Fitzjames Stephen** to prepare a comprehensive code on evidence.

Stephen examined:

- English Common Law

- Roman Law
- Indian judicial practices
- Existing statutes

His objective was to create:

- Simplicity
- Uniformity
- Certainty
- Judicial efficiency

The result was the **Indian Evidence Act, 1872**, which came into force on **1 September 1872**. It codified the law relating to admissibility, relevancy, proof, burden of proof, witnesses, documentary evidence, presumptions, estoppel, and examination of witnesses.

Objectives of the Indian Evidence Act, 1872

The Act was enacted:

- To consolidate the law of evidence.
 - To define the rules governing admissibility of evidence.
 - To establish uniform standards throughout India.
 - To reduce judicial uncertainty.
 - To prevent arbitrary decisions.
 - To ensure fair administration of justice.
-

Salient Features of the Indian Evidence Act, 1872

- Uniform code applicable throughout India.
- Applied to both civil and criminal proceedings.
- Distinguished between:
 - Oral Evidence
 - Documentary Evidence
- Introduced rules regarding:
 - Admissions

- Confessions
 - Relevancy
 - Burden of Proof
 - Estoppel
 - Presumptions
 - Witness examination
 - Recognized only legally admissible evidence.
-

Need for Reform

Although the Indian Evidence Act functioned effectively for more than 150 years, several practical problems emerged.

Technological Changes

The Act was enacted when:

- No computers
- No internet
- No mobile phones
- No CCTV
- No emails
- No cloud storage

Modern litigation increasingly involves:

- WhatsApp chats
- Emails
- CCTV recordings
- GPS data
- Mobile phones
- Digital signatures
- Electronic contracts

The original Act required multiple amendments (notably after the Information Technology Act, 2000) to accommodate electronic records, but concerns remained about clarity and consistency.

Enactment of the Bharatiya Sakshya Adhiniyam, 2023

The Government introduced the **Bharatiya Sakshya Bill, 2023**, later replaced by the **Bharatiya Sakshya (Second) Bill, 2023**. Parliament passed it in December 2023, it received Presidential assent on **25 December 2023**, and the **Bharatiya Sakshya Adhiniyam, 2023** came into force on **1 July 2024**, replacing the Indian Evidence Act, 1872.

Objectives of Bharatiya Sakshya Adhiniyam, 2023

The principal objectives are:

- Modernization of evidence law.
 - Recognition of electronic evidence in contemporary forms.
 - Simplification of procedural rules.
 - Speedy disposal of cases.
 - Digitalization of criminal justice.
 - Uniform application across India.
 - Continuity of established evidentiary principles while updating them for present-day needs.
-

Major Changes Introduced by BSA, 2023

1. Greater Recognition of Electronic Evidence

Electronic records receive enhanced recognition, reflecting the realities of digital communication and technology-driven investigations.

2. Digital Documents

Evidence may include:

- Emails
- SMS
- WhatsApp messages
- CCTV recordings
- Digital photographs
- Server records

- Cloud storage
- Mobile phone data

3. Technology-Oriented Justice

The Act supports:

- Electronic records
- Digital investigations
- Video recordings
- Electronic communication

4. Continuity

Most substantive principles relating to:

- Relevancy
- Admissions
- Confessions
- Burden of Proof
- Estoppel
- Witnesses

remain substantially unchanged, ensuring legal continuity while updating procedural aspects.

Comparative Analysis

Indian Evidence Act, 1872

Colonial legislation

Enacted in 1872

Came into force on 1 Sept. 1872

Limited original focus on digital evidence

Designed for paper-based records

Bharatiya Sakshya Adhiniyam, 2023

Modern Indian legislation

Enacted in 2023

Came into force on 1 July 2024

Explicitly modernizes treatment of electronic evidence

Designed for digital and electronic records

Indian Evidence Act, 1872

150-year-old framework

Bharatiya Sakshya Adhiniyam, 2023

Updated for contemporary justice

Landmark Case Laws

1. State of Bombay v. Kathi Kalu Oghad

Principle

- Distinguished testimonial compulsion from physical evidence.
- Clarified the scope of Article 20(3) of the Constitution in relation to evidence.

Importance

One of the foundational constitutional decisions on evidentiary principles.

2. R. M. Malkani v. State of Maharashtra

Principle

Tape-recorded conversations can be admissible if relevant and authentic.

Importance

Laid the groundwork for later acceptance of electronic evidence.

3. Anvar P. V. v. P. K. Basheer

Principle

Electronic evidence must satisfy the statutory requirements for admissibility (including certification requirements under the then-applicable law).

Importance

A landmark judgment on electronic evidence.

4. Arjun Panditrao Khotkar v. Kailash Kushanrao Gorantyal

Principle

Clarified the law regarding admissibility of electronic records and the certificate requirement.

Importance

One of the most important modern evidence-law decisions.

Critical Analysis

Merits

- Modernized evidence law.
- Better suited to digital technology.
- Facilitates electronic records.
- Promotes efficient investigation and trial.
- Retains established principles while updating procedure.

Criticisms

- Implementation requires robust digital infrastructure.
 - Greater reliance on electronic evidence increases concerns about authenticity, privacy, and cybersecurity.
 - Judicial officers, investigators, and lawyers require specialized training for effective implementation.
-

Examination-Oriented Points

Remember these dates:

- **Indian Evidence Act enacted:** 1872
- **Came into force:** 1 September 1872
- **Bharatiya Sakshya Adhiniyam enacted:** 2023
- **Presidential Assent:** 25 December 2023
- **Came into force:** 1 July 2024

Topic 2

Definitions under Section 2 of the Bharatiya Sakshya Adhiniyam, 2023

("Evidence", "Fact", "Fact in Issue", "Relevant", "Document", "Proved", "Disproved", "Not Proved", "May Presume", "Shall Presume" and "Conclusive Proof")

Introduction

The **Definitions** provided under **Section 2 of the Bharatiya Sakshya Adhiniyam, 2023 (BSA)** form the foundation of the law of evidence. Every concept in evidence law revolves around these basic definitions. Without understanding these terms, it is impossible to apply the provisions relating to admissibility, relevancy, burden of proof, presumptions, or appreciation of evidence.

The Bharatiya Sakshya Adhiniyam, 2023 substantially retains these classical definitions from the Indian Evidence Act, 1872 while modernizing the treatment of electronic records and digital evidence. Thus, judicial precedents decided under the Indian Evidence Act continue to remain highly relevant unless inconsistent with the new Act.

Section 2 – Definitions

Section 2 contains the definitions applicable throughout the Act. These definitions determine:

- What can be produced before the Court.
 - What facts need proof.
 - What facts are relevant.
 - How Courts appreciate evidence.
 - How presumptions operate.
 - When a fact is considered legally proved.
-

1. Evidence

Meaning

The term **Evidence** refers to everything which may legally be produced before a Court for proving or disproving a fact.

Under the BSA, evidence broadly includes:

1. **Oral Evidence**
 2. **Documentary Evidence**, including **electronic and digital records**.
-

Types of Evidence

A. Oral Evidence

Oral evidence consists of statements made before the Court by witnesses.

Example:

A witness states:

"I personally saw A stabbing B."

This is oral evidence.

B. Documentary Evidence

Documentary evidence includes every document produced before the Court.

Examples:

- Sale deed
 - Passport
 - Will
 - Agreement
 - Bank records
 - Medical report
-

C. Electronic Evidence

One of the most significant changes under BSA is the explicit recognition of electronic records as documentary evidence.

Examples:

- WhatsApp Chats
- Emails
- CCTV Footage
- Audio Recording
- Video Recording
- GPS Data
- Mobile Phone Data
- Cloud Records
- Computer Files
- Digital Contracts

Importance

Evidence is the medium through which facts are proved before the Court.

Without admissible evidence, no right can ordinarily be enforced.

Landmark Cases

1. R. M. Malkani v. State of Maharashtra (1973)

Held

Tape-recorded conversations are admissible if they are relevant and authentic.

Principle

Electronic recordings can constitute evidence if their authenticity is established.

2. Anvar P.V. v. P.K. Basheer (2014)

Held

Electronic records are admissible only in accordance with the statutory requirements governing electronic evidence.

Importance

This remains the leading authority on admissibility of electronic evidence.

3. Arjun Panditrao Khotkar v. Kailash Kushanrao Gorantyal (2020)

Held

Clarified the legal requirements regarding admissibility of electronic records.

2. Fact

Definition

A **Fact** means:

1. Anything capable of being perceived by the senses; or
2. Any mental condition of which a person is conscious.

Explanation

Facts may be:

Physical Facts

Examples:

- A knife lying on the floor.
- Blood stains.
- A broken window.
- Fingerprints.
- A person running from the scene.

Mental Facts

These relate to the state of mind.

Examples:

- Intention
- Knowledge
- Good faith
- Fraud
- Negligence
- Malice
- Fear

Illustration

If A intends to murder B,
the intention itself is a fact.

Landmark Case

Queen Empress v. Abdullah

The Court observed that intention is a fact capable of proof through surrounding circumstances.

3. Fact in Issue

Definition

Facts in issue are those facts which:

- are directly in dispute between the parties; and
 - must be proved or disproved to determine the rights or liabilities of the parties.
-

Explanation

Every case revolves around certain principal facts.

These are called **Facts in Issue**.

Example

A is charged with murdering B.

Facts in issue include:

- Whether A caused B's death.
 - Whether the act was intentional.
 - Whether B actually died.
 - Whether the death amounted to murder.
-

Difference between Fact and Fact in Issue

Fact	Fact in Issue
May or may not affect the case	Directly determines the case
Can be any fact	Must be proved for deciding the dispute
Larger concept	Narrower concept

Landmark Case

Ram Gopal v. State of Maharashtra

The Supreme Court observed that facts in issue constitute the principal controversy between the parties.

4. Relevant Fact

Meaning

A relevant fact is one which has a logical or legal connection with another fact in issue.

Importance

Not every fact is admissible.

Only relevant facts are admissible.

Example

A is accused of poisoning B.

Relevant facts include:

- Purchase of poison.
 - Threats made by A.
 - Presence of poison in food.
 - Medical opinion.
-

Landmark Case

State of Uttar Pradesh v. Raj Narain

The Supreme Court held that relevancy is determined by statutory provisions rather than mere logical connection.

Difference between Relevant Fact and Fact in Issue

Relevant Fact	Fact in Issue
Helps prove another fact	Directly determines the dispute

Relevant Fact	Fact in Issue
Secondary	Primary
Connected with facts in issue	Central issue

5. Document

Definition

A document means any matter expressed or described upon any substance by means of:

- letters
- figures
- marks
- symbols
- electronic means

intended to record that matter.

Examples

Traditional documents

- Sale deed
- Letter
- Diary
- Register
- Will

Electronic documents

- Email
- PDF
- Word file
- Excel Sheet
- CCTV footage

- Digital Signature
 - WhatsApp Chat
 - SMS
 - Database
 - Server Logs
-

Importance

BSA greatly expands the practical importance of electronic documents in modern litigation.

Landmark Case

Tomaso Bruno v. State of Uttar Pradesh (2015)

The Supreme Court emphasized the importance of CCTV footage and electronic evidence in criminal trials.

6. Proved

Definition

A fact is said to be **proved** when:

After considering the evidence,

the Court either:

- believes it to exist; or
 - considers its existence so probable that a prudent person would act upon it.
-

Standard

Civil Cases

Balance of Probabilities.

Criminal Cases

Beyond Reasonable Doubt.

Example

Twenty eyewitnesses consistently identify the accused.

The Court may hold the fact proved.

Landmark Case

Vijayee Singh v. State of Uttar Pradesh

The Supreme Court discussed the standard of proof in criminal cases and reiterated that the prosecution must establish guilt beyond reasonable doubt.

7. Disproved

Definition

A fact is disproved when:

The Court believes that it does not exist,

or

its non-existence is so probable that a prudent person would act upon that belief.

Example

A claims he was in Delhi.

Airport records show he was in London.

His plea is disproved.

8. Not Proved

Definition

A fact is **not proved** when:

It is neither proved nor disproved.

Meaning

The evidence is insufficient.

The Court remains uncertain.

Example

Only one doubtful witness supports the prosecution.

No corroboration exists.

The fact may be held "Not Proved."

Difference between Proved, Disproved and Not Proved

Proved	Disproved	Not Proved
Court believes fact exists	Court believes fact does not exist	Court remains uncertain
Positive conclusion	Negative conclusion	Neutral conclusion

9. May Presume

Meaning

Where the law says "**May Presume**", the Court has discretion.

The Court:

- may presume the fact exists; or
 - may require proof.
-

Nature

Discretionary Presumption.

Example

A letter properly posted may be presumed to have reached the addressee.

The Court may accept or reject the presumption depending on the facts.

Landmark Case

Har Charan Singh v. Shiv Rani

The Supreme Court explained that "may presume" confers discretionary power on the Court.

10. Shall Presume

Meaning

Where the law says "**Shall Presume**", the Court must presume the fact unless it is disproved.

Nature

Mandatory but rebuttable.

Example

If the statutory conditions are satisfied, the Court shall presume certain facts, but the opposite party may rebut the presumption with evidence.

Landmark Case

Hiten P. Dalal v. Bratindranath Banerjee

The Supreme Court explained that "shall presume" creates a mandatory rebuttable presumption.

11. Conclusive Proof

Meaning

When one fact is declared by law to be **conclusive proof** of another, the Court must treat the second fact as proved and cannot allow evidence to disprove it.

Nature

Irrebuttable (Conclusive) Presumption.

Example

Where the law declares a particular certified fact to be conclusive proof, parties cannot lead evidence to contradict it.

Landmark Case

Somawanti v. State of Punjab (1963)

The Supreme Court explained the distinction between ordinary presumptions and conclusive proof, holding that once the law declares something to be conclusive proof, no evidence can be adduced to disprove it.

Difference between "May Presume", "Shall Presume" and "Conclusive Proof"

Basis	May Presume	Shall Presume	Conclusive Proof
Nature	Discretionary	Mandatory but rebuttable	Mandatory and irrebuttable
Court's discretion	Yes	No	No
Rebuttal allowed	Yes	Yes	No
Burden of proof	May shift	Shifts unless rebutted	Ends completely

Important Case Laws (One-Line Revision)

Case	Principle
R. M. Malkani v. State of Maharashtra (1973)	Tape-recorded conversations are admissible if authentic.
Anvar P.V. v. P.K. Basheer (2014)	Laid down the law on admissibility of electronic evidence.
Arjun Panditrao Khotkar v. Kailash Kushanrao Gorantyal (2020)	Clarified the requirements for admissibility of electronic records.
Tomaso Bruno v. State of Uttar Pradesh (2015)	Highlighted the evidentiary value of CCTV and electronic evidence.
State of Uttar Pradesh v. Raj Narain (1975)	Relevancy depends on the statutory provisions of evidence law.
Hiten P. Dalal v. Bratindranath Banerjee (2001)	Explained the mandatory yet rebuttable nature of "shall presume".

Case	Principle
Somawanti v. State of Punjab (1963)	Distinguished "conclusive proof" from rebuttable presumptions.

Examination-Oriented Points

1. **Evidence** includes oral and documentary evidence, including electronic records.
2. **Fact** covers both physical facts and mental conditions.
3. **Fact in Issue** is the principal fact that determines the rights or liabilities of the parties.
4. **Relevant Fact** is connected to a fact in issue and is admissible because of that connection.
5. **Document** includes traditional as well as electronic records.
6. **Proved, Disproved, and Not Proved** reflect three distinct judicial conclusions.
7. **May Presume** is discretionary.
8. **Shall Presume** is mandatory but rebuttable.
9. **Conclusive Proof** is mandatory and cannot be rebutted.

Topic 3

Closely Connected Facts (Sections 3–14 of the Bharatiya Sakshya Adhiniyam, 2023)

Special Focus: Relevancy of Facts Forming Part of the Same Transaction (Res Gestae)

Note: In the Bharatiya Sakshya Adhiniyam, 2023 (BSA), the provisions relating to the **relevancy of facts (Sections 3–14)** substantially correspond to the provisions of the Indian Evidence Act, 1872. Therefore, judicial precedents decided under the Indian Evidence Act continue to be valuable for understanding these provisions unless inconsistent with the BSA.

Introduction

The fundamental principle of the law of evidence is that **only relevant facts are admissible before a Court**. However, not every fact connected with a dispute is directly in issue. Many surrounding facts, although not themselves in issue, are so closely connected with the principal fact that they assist the Court in discovering the truth.

Sections **3 to 14** of the Bharatiya Sakshya Adhiniyam, 2023 deal with the **relevancy of closely connected facts**. These provisions specify the circumstances in which facts connected with the principal fact become admissible.

Among these provisions, the **Relevancy of Facts Forming Part of the Same Transaction (Section 4 of the BSA, corresponding to the former Section 6 of the Indian Evidence Act)** is one of the most important and frequently applied principles in criminal as well as civil trials. This doctrine is popularly known as **Res Gestae**.

Meaning of Relevancy

A fact is said to be **relevant** when it has a logical and legal connection with a fact in issue and is declared relevant by the Bharatiya Sakshya Adhiniyam.

Only relevant facts are admissible in evidence.

Closely Connected Facts under Sections 3–14

The BSA recognizes several categories of relevant facts closely connected with the principal issue. These include:

1. Facts forming part of the **same transaction** (Res Gestae).
2. Facts constituting the **occasion, cause, or effect** of relevant facts.
3. Facts showing **motive, preparation, and previous or subsequent conduct**.
4. Facts necessary to explain or introduce a relevant fact.
5. Facts supporting or rebutting an inference.
6. Facts establishing **identity, time, or place**.
7. Facts showing the existence of a **conspiracy**.
8. Facts inconsistent with any fact in issue.
9. Facts determining the existence of any **right or custom**.
10. Facts showing the **state of mind, body, or bodily feeling**.

These provisions enlarge the scope of admissible evidence by allowing the Court to consider the complete factual background instead of isolated incidents.

Relevancy of Facts Forming Part of the Same Transaction (Section 4 – Res Gestae)

Meaning

Section 4 provides that **facts which are so connected with a fact in issue as to form part of the same transaction are relevant**, whether they occurred:

- at the same time,
- at different times,
- at the same place, or
- at different places.

Thus, every fact forming an integral part of the transaction becomes admissible.

Meaning of "Transaction"

The term **transaction** is not defined in the BSA.

According to judicial interpretation, a transaction means:

A continuous series of connected acts so linked together by proximity of time, place, continuity, and purpose that they constitute one whole occurrence.

A transaction may consist of:

- A single act,
 - Multiple acts,
 - Several persons,
 - Several places,
 - A continuous chain of events.
-

Meaning of Res Gestae

The expression **Res Gestae** is a Latin phrase meaning:

"Things done" or "Things forming part of the transaction."

The doctrine permits the admission of statements or acts that are so closely connected with the occurrence that they form part of the same transaction.

Such statements derive reliability from their spontaneity, leaving little opportunity for fabrication.

Essentials of Res Gestae

For a fact to be admissible under Section 4, the following conditions should ordinarily be satisfied:

1. Connection with the Main Transaction

The fact must be directly connected with the principal occurrence.

2. Continuity

There should be continuity of action without any substantial interruption.

3. Proximity of Time

The statement or act should be contemporaneous with, or immediately connected to, the transaction.

4. Unity of Place (Not Always Essential)

The events may occur at different places if they remain part of one continuous transaction.

5. Unity of Purpose

The various acts should pursue the same object or purpose.

6. Spontaneity

The statement should arise naturally from the occurrence and not after reflection or deliberation.

Illustrations

Illustration 1

A stabs B in a crowded market.

Immediately after being stabbed, B shouts:

"A has stabbed me."

The statement is admissible under Section 4 because it forms part of the same transaction.

Illustration 2

A fires at B.

Several people immediately rush to the scene and hear B crying for help.

These cries constitute relevant facts.

Illustration 3

A kidnaps B from Delhi and transports him to Lucknow.

Every connected act during the journey forms part of one transaction.

Tests for Determining the Same Transaction

The Supreme Court has laid down several tests for determining whether facts form part of the same transaction:

(A) Proximity of Time

Events should occur within a reasonably close time.

(B) Proximity of Place

Events occurring at different places may still constitute one transaction if they remain interconnected.

(C) Continuity of Action

There should be an unbroken sequence of events.

(D) Community of Purpose

The acts should pursue one common objective.

Importance of the Doctrine

The doctrine of Res Gestae:

- Prevents exclusion of important surrounding facts.
 - Assists in discovering the complete truth.
 - Reduces the danger of fabricated evidence.
 - Helps the Court understand the entire incident.
 - Makes spontaneous statements admissible despite the rule against hearsay.
-

Res Gestae and Hearsay Rule

Generally, **hearsay evidence is inadmissible**.

However, statements forming part of the same transaction constitute an important exception.

The rationale is that spontaneous statements made during or immediately after an occurrence are considered reliable because there is little opportunity for concoction.

Landmark Case Laws

1. Ratten v. The Queen (1972) (Privy Council)

Facts

A woman telephoned the police seeking immediate assistance shortly before she was shot.

Held

The telephone conversation was admissible because it formed part of the same transaction.

Principle

Spontaneous statements made contemporaneously with an occurrence are admissible under the doctrine of Res Gestae.

2. Sukhar v. State of Uttar Pradesh (1999)

Facts

The injured person immediately informed witnesses regarding the identity of the assailant.

Held

The Supreme Court held that the statement formed part of the same transaction and was admissible.

Principle

Statements made immediately after the incident without opportunity for fabrication are relevant under Section 4.

3. Gentela Vijayavardhan Rao v. State of Andhra Pradesh (1996)

Facts

Passengers made statements after a bus was set on fire.

Held

The Supreme Court observed that only statements having a direct and immediate connection with the occurrence are admissible.

Principle

The doctrine requires continuity and proximity between the statement and the transaction.

4. Bishna v. State of West Bengal (2005)

Held

The Supreme Court explained that the expression "same transaction" should receive a practical and liberal interpretation.

Principle

A transaction may consist of a continuous chain of connected events.

5. State of Andhra Pradesh v. Panna Satyanarayana (2000)

Held

The Court emphasized that spontaneity is the foundation of admissibility under the doctrine of Res Gestae.

Other Relevant Facts under Sections 5–14 (Brief Overview)

1. Occasion, Cause or Effect of Facts

Facts explaining the cause or consequences of a relevant fact are admissible.

Example: Bloodstains, damaged property, or injuries resulting from an assault.

2. Motive

Motive explains why a person committed an act.

Example: Property dispute leading to murder.

Important Case: *State of Uttar Pradesh v. Babu Ram*.

3. Preparation

Preparation consists of acts done before the commission of an offence.

Examples:

- Purchasing poison.
 - Buying a weapon.
 - Making travel arrangements.
-

4. Previous or Subsequent Conduct

The conduct of parties before or after the incident may be relevant.

Example: An accused absconding immediately after the offence.

Important Case: *Prakash Chand v. State (Delhi Administration)*.

5. Facts Necessary to Explain Relevant Facts

Facts explaining identity, place, time, or surrounding circumstances become relevant.

6. Conspiracy

Acts and statements of co-conspirators made in furtherance of the conspiracy are relevant against all conspirators.

Landmark Case: *Mirza Akbar v. King Emperor*.

7. Facts Inconsistent with the Fact in Issue

Facts inconsistent with the prosecution's case may become relevant.

Example:

If the accused proves he was abroad at the relevant time, that fact becomes relevant.

8. Right or Custom

Where a right or custom is in dispute, facts showing its existence or recognition become relevant.

9. State of Mind

Facts showing intention, knowledge, good faith, negligence, fraud, ill-will, or malice are relevant whenever such mental condition is in issue.

10. State of Body

Physical condition such as illness, injury, intoxication, or pregnancy may become relevant depending on the facts of the case.

Difference between Relevant Facts and Facts Forming Part of the Same Transaction

Relevant Facts	Facts Forming Part of the Same Transaction
A broad category declared relevant by the Act. A specific category of relevant facts under Section 4.	
May have direct or indirect connection with the fact in issue.	Must have a direct and integral connection with the principal occurrence.
Includes motive, conduct, preparation, conspiracy, etc.	Includes only acts and statements constituting one continuous transaction.
Governed by various provisions of Sections 3–14.	Governed specifically by Section 4 (Res Gestae).

Critical Analysis

Merits

- Ensures that the Court considers the entire factual context rather than isolated events.
- Prevents exclusion of trustworthy spontaneous statements.
- Assists in discovering the truth by admitting connected facts.
- Provides an important exception to the hearsay rule.
- Facilitates fair and effective adjudication in both civil and criminal cases.

Limitations

- The expression "**same transaction**" is not statutorily defined, leaving its scope to judicial interpretation.
 - Determining whether events are sufficiently proximate in time, place, and continuity may be difficult in complex cases.
 - Courts must apply the doctrine cautiously to prevent the admission of remote or fabricated statements.
-

Examination-Oriented Points

- **Sections 3–14** deal with the relevancy of closely connected facts under the BSA.
- **Section 4** embodies the doctrine of **Res Gestae**.
- **Res Gestae** literally means "**things done**."
- Facts forming part of the same transaction are relevant even if they occur at different times and places, provided they constitute one continuous transaction.
- The essential tests are **proximity of time, continuity of action, unity of purpose, and spontaneity**.
- Statements admitted under **Res Gestae** are an important **exception to the hearsay rule**.
- Leading cases: **Ratten v. The Queen, Sukhar v. State of Uttar Pradesh, Gentela Vijayavardhan Rao v. State of Andhra Pradesh, Bishna v. State of West Bengal, and Mirza Akbar v. King Emperor**.

Understood. From now onwards, I will **not include the "Probable University Examination Questions" section** in the notes.

The notes will follow this structure:

1. Introduction
2. Meaning & Definition
3. Essential Ingredients
4. Legal Provisions (with relevant Sections of BSA)
5. Types/Classifications
6. Illustrations
7. Landmark Case Laws
8. Difference Tables (where applicable)
9. Critical Analysis
10. Examination-Oriented Points
11. Conclusion

UNIT – II

Topic 1

Admissions (Sections 15–21 & 25 of the Bharatiya Sakshya Adhiniyam, 2023)

Introduction

The concept of **Admission** is one of the most important principles under the **Bharatiya Sakshya Adhiniyam, 2023 (BSA)**. Admissions are relevant because a person ordinarily does not make a statement against his own interest unless it is true. Therefore, admissions constitute valuable evidence, although they are generally **not conclusive proof** of the facts admitted.

The provisions relating to admissions under the Bharatiya Sakshya Adhiniyam substantially correspond to the provisions contained in the **Indian Evidence Act, 1872**. Consequently, judicial precedents interpreting the Indian Evidence Act continue to guide the interpretation of the BSA unless inconsistent with its provisions.

Admissions are dealt with in **Sections 15 to 21 and Section 25** of the Bharatiya Sakshya Adhiniyam, 2023.

Meaning of Admission

An **Admission** is a statement, oral, documentary, or electronic, which suggests an inference regarding any fact in issue or relevant fact and is made by a person under the circumstances specified in the Act.

An admission is not itself the fact in issue; rather, it is a statement from which the Court may infer the existence or non-existence of a relevant fact.

Statutory Definition (Section 15)

Section 15 defines an admission as:

A statement, oral, documentary, or contained in electronic form, which suggests any inference as to any fact in issue or relevant fact, and which is made by any of the persons and under the circumstances mentioned in the Act.

Essentials of an Admission

For a statement to qualify as an admission, the following conditions must be satisfied:

1. It must be a **statement**.
 2. It may be **oral, documentary, or electronic**.
 3. It must relate to a **fact in issue or relevant fact**.
 4. It must suggest an **inference** regarding that fact.
 5. It must be made by a **competent person** recognized under the Act.
-

Forms of Admission

1. Oral Admission

An oral statement made by a party or other competent person acknowledging a relevant fact.

Example:

A says,

"I borrowed ₹5,00,000 from B."

This statement is an oral admission.

2. Documentary Admission

An admission contained in a written document.

Examples:

- Letters
 - Agreements
 - Receipts
 - Bank records
 - Account books
-

3. Electronic Admission

The BSA expressly recognizes admissions contained in electronic records.

Examples:

- WhatsApp Chats
 - Emails
 - SMS
 - Audio Messages
 - Video Messages
 - Social Media Messages
 - Digital Contracts
-

Persons Whose Admissions Are Relevant (Sections 16–21)

The Act specifies whose admissions are relevant.

(A) Admissions by Parties

Statements made by the parties to the proceeding are relevant against them.

Example

A files a suit claiming ownership of land.

Earlier, A had written that the land belonged to B.

The earlier statement is an admission.

(B) Admissions by Authorized Agents

Admissions made by agents expressly or impliedly authorized by the parties are relevant.

Example

A company's manager admits liability during negotiations.

The statement may bind the company.

(C) Admissions by Persons Having Proprietary or Pecuniary Interest

Statements made by persons having a proprietary or financial interest in the subject matter are relevant.

Example

A co-owner admits the existence of another person's share in the property.

(D) Admissions by Persons from Whom Parties Derive Interest

Admissions made by predecessors-in-title are relevant against successors.

Example

A purchases land from B.

A statement made earlier by B regarding defects in the title may be relevant against A.

Admissions by Third Persons

Generally, statements made by strangers are not admissions.

However, where the Act specifically recognizes such statements, they may become relevant.

Admissions in Civil Proceedings

Admissions in civil cases often constitute strong evidence.

Courts frequently rely upon admissions to determine:

- Ownership
 - Possession
 - Liability
 - Contractual obligations
 - Family disputes
-

Admissions in Criminal Proceedings

Admissions are admissible in criminal proceedings, subject to statutory safeguards.

However, special protection exists against involuntary admissions and confessions.

Evidentiary Value of Admission

Admissions are:

- Relevant evidence.
- Strong evidence against the maker.
- Not conclusive proof.
- Capable of being explained or disproved.

The person making the admission may show that:

- It was mistaken.
 - It was misunderstood.
 - It was obtained by fraud.
 - It was made under coercion.
 - It was incorrect.
-

Admission is Not Conclusive Proof

An admission raises a strong presumption but does not finally determine the issue.

The maker is entitled to explain the circumstances under which the admission was made.

Distinction between Admission and Confession

Admission	Confession
May arise in civil or criminal cases.	Relevant only in criminal cases.
May relate to any fact in issue or relevant fact.	Must amount to an acknowledgment of guilt.
Every confession is an admission.	Every admission is not a confession.
Does not necessarily establish criminal liability.	Directly relates to the commission of an offence.

Oral Admissions Regarding Documents

As a general rule, when the contents of a document are in issue, they should be proved by producing the document itself.

Oral evidence regarding the contents of a document is ordinarily inadmissible, except in circumstances permitted by law.

This principle upholds the **Best Evidence Rule**, ensuring that primary documentary evidence is preferred over oral testimony.

Section 25 – Admission by Silence

Section 25 recognizes that in certain circumstances, **silence or conduct** may amount to an admission if, considering the surrounding circumstances, a reasonable person would naturally have denied the statement but remained silent.

Example

A publicly accuses B of owing him money in B's presence.

If B remains silent in circumstances where a denial would ordinarily be expected, the Court may consider whether such silence amounts to an admission.

However, **mere silence does not automatically constitute an admission**. The Court must examine:

- The relationship between the parties.

- The circumstances.
 - Whether a response was naturally expected.
-

Difference between Admission and Judicial Admission

Judicial Admission

Made before the Court during judicial proceedings.

Usually contained in pleadings or formal statements.

Generally dispenses with proof.

Normally binding unless permitted to be withdrawn.

Evidentiary Admission

Made outside judicial proceedings.

May be oral, written, or electronic.

Requires appreciation by the Court.

Can be explained or rebutted.

Landmark Case Laws

1. Pakala Narayana Swami v. Emperor (1939)

Principle

The Privy Council explained the distinction between an **admission** and a **confession**, holding that every confession is an admission, but every admission is not a confession.

Importance

This remains the leading authority on the distinction between admissions and confessions.

2. Narayan Bhagwantrao Gosavi Balajiwale v. Gopal Vinayak Gosavi (1960)

Held

The Supreme Court held that an admission is the **best evidence** that an opposite party can rely upon, though it is **not conclusive** and may be explained.

3. Avadh Kishore Das v. Ram Gopal (1979)

Held

The Supreme Court reiterated that admissions constitute substantive evidence but are not conclusive proof.

4. Basant Singh v. Janki Singh (1967)

Held

Admissions are relevant and admissible against the person making them but cannot ordinarily be used in favour of the maker.

5. Nagindas Ramdas v. Dalpatram Ichharam (1974)

Held

Judicial admissions made in pleadings are binding upon the parties unless withdrawn or successfully explained.

Critical Analysis

Merits

- Admissions simplify litigation by narrowing the issues in dispute.
- They save judicial time and expense.
- They are generally reliable because they are statements against the maker's interest.
- Recognition of electronic admissions reflects modern modes of communication.

Limitations

- Admissions may sometimes be made under mistake, misunderstanding, or coercion.
 - Electronic admissions require careful verification of authenticity.
 - Admissions are not conclusive and must be evaluated in light of the entire evidence.
-

Examination-Oriented Points

- **Sections 15–21 and 25** of the BSA deal with admissions.
- An admission may be **oral, documentary, or electronic**.
- Admissions are **relevant but not conclusive proof**.
- Every **confession is an admission**, but every admission is **not a confession**.
- Admissions by **parties, authorized agents, persons having proprietary or pecuniary interest, and predecessors-in-title** are relevant under the Act.

- Judicial admissions generally bind the maker, whereas evidentiary admissions may be explained or rebutted.
 - **Pakala Narayana Swami, Narayan Bhagwantrao Gosavi, Avadh Kishore Das, Basant Singh, and Nagindas Ramdas** are leading authorities on admissions.
-

Conclusion

Admissions occupy a central place in the law of evidence because they enable courts to determine disputed facts with greater certainty and efficiency. The Bharatiya Sakshya Adhiniyam, 2023 preserves the well-established principles governing admissions while extending their scope to include statements contained in electronic records. Although admissions are among the strongest forms of evidence, they are **not conclusive**, and courts must assess them along with all other evidence to ensure a just and fair decision.

Topic 2

Confession Caused by Inducement, Threat, Coercion or Promise (Section 22) and Confession to Police Officer (Section 23)

Introduction

A **confession** is one of the most important forms of evidence in criminal law. It is a statement made by an accused person admitting his guilt regarding the commission of an offence. Since a confession may lead to the conviction of the accused, the law insists that it must be **voluntary, free, and reliable**.

The **Bharatiya Sakshya Adhiniyam, 2023 (BSA)** contains safeguards to protect accused persons from involuntary confessions obtained through inducement, threat, coercion, or improper influence. These safeguards are embodied mainly in **Sections 22 and 23**, which substantially correspond to the provisions of the **Indian Evidence Act, 1872**.

The underlying principle is that **a confession must be voluntary to be admissible in evidence**.

Meaning of Confession

The Bharatiya Sakshya Adhiniyam does **not define the term "Confession."** The meaning has therefore been developed through judicial interpretation.

According to judicial decisions:

A confession is a statement made by an accused person admitting the commission of an offence or substantially admitting all the facts constituting the offence.

A confession must clearly acknowledge guilt. A mere admission of certain facts, without admitting guilt, is **not** a confession.

Difference between Admission and Confession

Admission	Confession
May be made in civil or criminal proceedings.	Relevant only in criminal proceedings.
Relates to any fact in issue or relevant fact.	Specifically relates to the commission of an offence.
May or may not amount to acknowledgment of guilt.	Must admit guilt, either expressly or substantially.
Every admission is not a confession.	Every confession is an admission.

Essentials of a Valid Confession

For a confession to be legally admissible, it should satisfy the following conditions:

1. It must be made by the accused.
 2. It must be voluntary.
 3. It must not be caused by inducement, threat, coercion, or promise.
 4. It should be clear, definite, and unambiguous.
 5. It should relate to the offence charged.
 6. It must be proved according to law.
-

Types of Confession

1. Judicial Confession

A judicial confession is made before:

- A Magistrate, or
- A Court during judicial proceedings.

It carries greater evidentiary value because it is recorded under legal safeguards.

2. Extra-Judicial Confession

An extra-judicial confession is made outside the Court.

It may be made to:

- A friend
- A relative
- A village head
- Any private person

Although admissible, courts generally seek corroboration before basing a conviction solely upon such a confession.

Section 22 – Confession Caused by Inducement, Threat, Coercion or Promise

Statutory Principle

Section 22 provides that a confession is **irrelevant** if it appears to the Court that it has been caused by:

- Inducement,
- Threat,
- Coercion, or
- Promise,

made by a person in authority, which gives the accused reasonable grounds to believe that by making the confession he would obtain some advantage or avoid some evil relating to the proceedings.

Object of Section 22

The purpose of Section 22 is:

- To ensure fairness in criminal trials.
 - To prevent forced confessions.
 - To protect the constitutional rights of the accused.
 - To exclude unreliable evidence.
 - To discourage abuse of authority by investigating agencies.
-

Essential Ingredients of Section 22

For Section 22 to apply, the following conditions must exist:

1. There must be a Confession

The statement should amount to a confession of guilt.

2. There must be an Inducement, Threat, Coercion or Promise

The confession must have been influenced by:

- Hope of benefit,
 - Fear of injury,
 - Physical pressure,
 - Mental pressure,
 - Promise of leniency.
-

3. It must proceed from a Person in Authority

The inducement or threat should originate from a person who has authority or influence over the accused.

Examples:

- Police Officer
 - Magistrate
 - Jail Superintendent
 - Investigating Officer
-

4. The Accused must Believe that he will Gain an Advantage or Avoid an Evil

The inducement must reasonably create an expectation that:

- punishment will be reduced,
 - prosecution will be withdrawn,
 - bail will be granted,
 - favourable treatment will be given.
-

5. The Advantage or Evil must Relate to the Criminal Proceedings

The inducement should relate to the legal consequences of the offence.

Meaning of Important Terms

(A) Inducement

Inducement means offering an incentive to persuade the accused to confess.

Example

"If you confess, your sentence will be reduced."

(B) Threat

Threat means creating fear of adverse consequences.

Example

"If you do not confess, your family will be arrested."

(C) Coercion

Coercion includes physical or mental pressure compelling a confession.

Examples:

- Assault
 - Illegal detention
 - Torture
 - Continuous intimidation
-

(D) Promise

A promise means assuring some benefit in return for making a confession.

Example:

"If you confess today, you will be released."

Illustrations

Illustration 1

A police officer tells the accused:

"Confess, and I will recommend that you be released."

The confession is **inadmissible** because it was induced by a promise.

Illustration 2

An investigating officer threatens:

"If you remain silent, your brother will also be arrested."

Any confession obtained is **irrelevant**.

Illustration 3

A confession voluntarily made without any pressure is **admissible**, provided it satisfies the other legal requirements.

Voluntary Confession

A confession is voluntary when it is made:

- Freely,
- Without fear,
- Without hope of reward,
- Without coercion,
- Without improper influence.

Voluntariness is the foundation of admissibility.

Burden of Proof

Where the accused alleges that a confession was obtained through inducement, threat, coercion, or promise, the Court examines the surrounding circumstances to determine whether the confession was voluntary.

The prosecution must satisfy the Court that the confession is genuine and voluntary before it can be relied upon.

Section 23 – Confession to Police Officer

Statutory Rule

Section 23 lays down an important safeguard:

No confession made to a police officer shall be proved as against a person accused of any offence.

This rule applies irrespective of whether:

- the confession is true,
- voluntary,
- or recorded in writing.

Object of Section 23

The object of this provision is:

- To prevent police coercion.
- To eliminate the possibility of fabricated confessions.
- To ensure fairness in criminal investigations.
- To safeguard the rights of the accused.

Why are Police Confessions Inadmissible?

Historically, there was concern that police officers might obtain confessions through:

- Torture,
- Threats,
- Illegal detention,
- Physical violence,
- Mental pressure.

Therefore, the law excludes confessions made to police officers as a matter of public policy.

Scope of Section 23

The prohibition applies to:

- Oral confessions.
- Written confessions.
- Electronic confessions made directly to a police officer.

However, the section bars proof **against the accused**. It does not prevent the use of legally admissible evidence discovered independently in accordance with other provisions of law.

Exception

Although a confession to a police officer is generally inadmissible, **facts discovered as a consequence of information supplied by the accused** may become admissible to the limited extent permitted by the relevant statutory provision governing discovery of facts.

Judicial Confession vs Police Confession

Judicial Confession	Police Confession
Made before a Magistrate or Court.	Made to a police officer.
Generally admissible if voluntary and properly recorded.	Generally inadmissible against the accused under Section 23.
Recorded under judicial safeguards.	Excluded to prevent coercion and abuse.

Landmark Case Laws

1. Pakala Narayana Swami v. Emperor (1939)

Principle

The Privy Council explained the distinction between an admission and a confession and held that a confession must either admit the offence in terms or substantially all the facts constituting the offence.

2. State of Punjab v. Barkat Ram (1962)

Held

The Supreme Court held that the prohibition against confessions made to police officers is based on public policy to prevent abuse of investigative powers.

3. Dagdu v. State of Maharashtra (1977)

Held

The Supreme Court observed that a confession must be voluntary, truthful, and free from any inducement, threat, or promise before it can be relied upon.

4. Pyare Lal Bhargava v. State of Rajasthan (1963)

Held

The Court emphasized that only voluntary confessions possess evidentiary value.

5. State of Rajasthan v. Raja Ram (2003)

Held

The Supreme Court reiterated that extra-judicial confessions may form the basis of conviction if they are voluntary, truthful, and inspire confidence, though courts ordinarily seek corroboration as a matter of prudence.

6. Aghnoo Nagesia v. State of Bihar (1966)

Held

The Supreme Court held that a confession made to a police officer is inadmissible against the accused except to the limited extent permitted by law regarding discovery of facts.

Critical Analysis

Merits

- Protects the constitutional rights of the accused.
- Prevents torture and coercive investigative practices.
- Enhances the reliability of criminal trials.
- Encourages fair investigation.
- Reduces the risk of wrongful convictions based on involuntary confessions.

Limitations

- Genuine confessions made to police officers cannot ordinarily be proved against the accused.

- Investigating agencies must rely on independent corroborative evidence.
 - Determining whether a confession was truly voluntary may sometimes be difficult.
-

Examination-Oriented Points

- The **Bharatiya Sakshya Adhiniyam, 2023** does not define "confession"; its meaning is derived from judicial decisions.
 - **Every confession is an admission, but every admission is not a confession.**
 - **Section 22** excludes confessions caused by **inducement, threat, coercion, or promise** from a person in authority.
 - A confession is admissible only if it is **voluntary**.
 - **Section 23** renders **confessions made to police officers inadmissible** against the accused, irrespective of their truth or voluntariness.
 - Judicial confessions generally have greater evidentiary value than extra-judicial confessions.
 - Leading authorities include **Pakala Narayana Swami v. Emperor**, **State of Punjab v. Barkat Ram**, **Dagdu v. State of Maharashtra**, **Pyare Lal Bhargava v. State of Rajasthan**, **State of Rajasthan v. Raja Ram**, and **Aghnoo Nagesia v. State of Bihar**.
-

Conclusion

The provisions relating to confessions under **Sections 22 and 23 of the Bharatiya Sakshya Adhiniyam, 2023** reflect the fundamental principle that **no person should be convicted on the basis of an involuntary or police-induced confession**. A confession is considered reliable only when it is made freely and voluntarily. By excluding confessions obtained through inducement, threat, coercion, promise, or those made directly to police officers, the Act protects individual liberty, upholds procedural fairness, and strengthens the integrity of the criminal justice system.

Topic 3

Confession Affecting the Person Making It and Others Jointly Under Trial for the Same Offence (Section 24)

Introduction

A confession is one of the strongest forms of evidence in criminal law because it is a direct acknowledgment of guilt by an accused person. Ordinarily, a confession is **evidence only against the person who makes it**. However, an exception is provided under **Section 24 of the Bharatiya Sakshya Adhiniyam, 2023**, which corresponds to **Section 30 of the Indian Evidence Act, 1872**.

Section 24 provides that when **two or more persons are jointly tried for the same offence**, and one of them makes a confession affecting himself as well as the other accused, the Court **may take such confession into consideration** against the co-accused.

This provision does **not make the confession substantive evidence against the co-accused**. It merely allows the Court to consider it along with other independent evidence.

Statutory Provision (Section 24)

Section 24 provides that:

When more persons than one are being jointly tried for the same offence, and a confession made by one of such persons affecting himself and some other of such persons is proved, the Court may take into consideration such confession against the person making it as well as against the other persons jointly tried with him.

The use of the expression "**may take into consideration**" indicates that the Court has **discretion**. The confession is not automatically sufficient to convict a co-accused.

Object of Section 24

The objectives of Section 24 are:

- To enable the Court to consider the entire evidence in a joint trial.
 - To prevent inconsistent findings against jointly tried accused persons.
 - To assist the Court in discovering the truth while maintaining safeguards against wrongful conviction.
 - To ensure that a confession affecting co-accused is used cautiously.
-

Essentials of Section 24

For Section 24 to apply, the following conditions must be fulfilled:

1. There must be Two or More Accused Persons

The provision applies only where there are at least two accused.

2. They Must be Jointly Tried

The accused persons must be tried together in the **same trial**.

If separate trials are conducted, Section 24 does not apply.

3. The Confession Must be Proved

The confession must first be legally proved according to the Bharatiya Sakshya Adhiniyam.

An inadmissible confession cannot be relied upon.

4. The Confession Must Affect Both the Maker and the Co-Accused

The confession should:

- implicate the maker, and
- also implicate one or more co-accused.

If the confession only incriminates another person while exonerating the maker, it is not covered by Section 24.

5. The Joint Trial Must Relate to the Same Offence

The accused must be jointly tried for:

- the same offence, or
 - offences arising out of the same transaction where a joint trial is legally permissible.
-

Nature of Evidence under Section 24

A confession under Section 24 is:

- Relevant.
- Admissible for limited purposes.
- Not substantive evidence against the co-accused.
- Merely corroborative in nature.
- Required to be considered with other independent evidence.

The confession can strengthen an already established prosecution case, but it **cannot by itself form the sole basis of conviction of the co-accused.**

Why is Such Confession Treated with Caution?

A person making a confession may:

- Shift blame to others.
- Attempt to reduce his own responsibility.
- Make false allegations out of revenge.
- Seek personal advantage.

Therefore, courts insist upon independent corroboration before relying upon such a confession against a co-accused.

Illustration

Illustration 1

A and B are jointly tried for robbery.

A confesses:

"B and I together committed the robbery."

The confession is admissible against A.

The Court **may also consider** it against B, but **B cannot ordinarily be convicted solely on the basis of A's confession** unless there is independent evidence connecting B with the offence.

Illustration 2

A and B are charged with murder.

A confesses:

"I alone murdered the deceased."

This confession affects only A.

Section 24 does not apply against B.

Illustration 3

A and B are separately tried.

A confesses that both committed the offence.

Since there is **no joint trial**, Section 24 is inapplicable.

Evidentiary Value of Confession Against Co-Accused

The confession:

- Is not substantive evidence.
- Has comparatively weak evidentiary value.
- Requires corroboration by independent evidence.
- Can only lend assurance to other reliable evidence already on record.

The Supreme Court has consistently held that a co-accused cannot ordinarily be convicted solely on the basis of another accused's confession.

Rule of Prudence

The established judicial rule is:

A confession of a co-accused should never be treated as the sole foundation of conviction.

The Court should first examine:

- Direct evidence,
- Circumstantial evidence,
- Documentary evidence,
- Scientific evidence.

Only after finding sufficient independent evidence should the confession be used as an additional supporting circumstance.

Difference between Confession Against Maker and Against Co-Accused

Confession Against Maker	Confession Against Co-Accused
Substantive evidence against the maker if legally admissible.	Not substantive evidence.
May be sufficient to sustain conviction if voluntary and reliable.	Cannot ordinarily be the sole basis of conviction.
Directly binds the maker.	Only a corroborative circumstance.

Difference between Admission and Confession Affecting Co-Accused

Admission

May arise in civil or criminal proceedings.

May relate to any relevant fact.

May not involve co-accused.

Confession under Section 24

Applies only in criminal proceedings.

Must amount to a confession of guilt.

Specifically affects both the maker and a jointly tried co-accused.

Landmark Case Laws

1. Kashmira Singh v. State of Madhya Pradesh (1952)

Facts

One accused confessed implicating himself and another accused in a murder case.

Held

The Supreme Court held that:

- A confession of a co-accused is **not substantive evidence**.
- It can only be used to lend assurance to other independent evidence.
- It cannot be the sole basis for conviction.

Principle

This is the leading authority on Section 24.

2. Haricharan Kurmi v. State of Bihar (1964)

Held

The Supreme Court observed that the confession of a co-accused has **very weak evidentiary value** and cannot be treated as substantive evidence.

Principle

Independent evidence is essential before relying upon such confession.

3. Pancho v. State of Haryana (2011)

Held

The Court reiterated that the confession of a co-accused cannot by itself sustain a conviction and must be corroborated by independent evidence.

4. State (NCT of Delhi) v. Navjot Sandhu (Parliament Attack Case) (2005)

Held

The Supreme Court emphasized that a confession implicating co-accused must be used with great caution and only in support of other convincing evidence.

5. Balbir Singh v. State of Punjab (1957)

Held

The Court held that a confession becomes relevant against co-accused only when all statutory conditions for joint trial are fulfilled.

Critical Analysis

Merits

- Assists the Court in appreciating the entire evidence during a joint trial.
- Prevents the exclusion of relevant admissions made by an accused.
- Promotes judicial efficiency where offences are committed jointly.
- Enables the Court to evaluate the conduct and role of all accused persons together.

Limitations

- A co-accused has no opportunity to cross-examine the maker of the confession regarding its contents.
 - The maker may falsely implicate others to reduce his own liability.
 - Excessive reliance on such confessions may lead to miscarriage of justice.
 - Therefore, courts insist upon strict scrutiny and independent corroboration.
-

Examination-Oriented Points

- **Section 24 of the Bharatiya Sakshya Adhiniyam, 2023** corresponds to **Section 30 of the Indian Evidence Act, 1872**.
- The provision applies **only where two or more persons are jointly tried** for the same offence.

- The confession must **affect both the maker and the co-accused**.
- The confession must be **legally proved** before it can be considered.
- The Court **may** take such confession into consideration; it is **not bound** to rely upon it.
- A confession of a co-accused is **not substantive evidence**.
- **Independent corroboration is ordinarily necessary** before acting upon such confession.
- Leading authorities include **Kashmira Singh v. State of Madhya Pradesh, Haricharan Kurmi v. State of Bihar, Pancho v. State of Haryana, State (NCT of Delhi) v. Navjot Sandhu, and Balbir Singh v. State of Punjab**.

Conclusion

Section 24 of the Bharatiya Sakshya Adhiniyam, 2023 creates a limited exception to the general rule that a confession is evidence only against its maker. It permits the Court to consider a confession against a co-accused **only when all statutory conditions are fulfilled**, particularly the requirement of a **joint trial**. However, consistent with long-standing judicial practice, such a confession is **not substantive evidence** against the co-accused and **cannot ordinarily form the sole basis of conviction**. Courts must seek reliable independent corroboration before placing reliance upon it, thereby balancing the search for truth with the protection of the rights of the accused.

Topic 4

Dying Declaration (Section 26(1))

Introduction

The **Dying Declaration** is one of the most important exceptions to the rule against **hearsay evidence** under the Bharatiya Sakshya Adhiniyam, 2023 (BSA). Ordinarily, statements made outside the Court are inadmissible because the maker cannot be cross-examined. However, where a person makes a statement regarding the cause or circumstances of his death and subsequently dies, the law treats such a statement as relevant.

The principle is based on the Latin maxim:

"Nemo moriturus praesumitur mentiri."

It means:

"A person who is at the point of death is not presumed to lie."

The law assumes that a person facing imminent death has no motive to make a false statement and is likely to speak the truth.

Under the **Bharatiya Sakshya Adhiniyam, 2023**, the provisions relating to dying declarations are contained in **Section 26(1)**, which substantially corresponds to **Section 32(1) of the Indian Evidence Act, 1872**.

Meaning of Dying Declaration

A **Dying Declaration** is a statement made by a person relating to:

- the cause of his death, or
- any of the circumstances of the transaction resulting in his death,

when the cause of that person's death comes into question before the Court.

Such a statement becomes relevant after the death of the maker.

Statutory Provision (Section 26(1))

Section 26(1) provides that:

Statements made by a person as to:

- the cause of his death, or
- any of the circumstances of the transaction which resulted in his death,

are relevant in cases where the cause of that person's death is in question.

Object of Section 26(1)

The objectives of this provision are:

- To admit valuable evidence that would otherwise be lost because of the death of the maker.
 - To assist the Court in determining the true cause of death.
 - To ensure that offenders do not escape punishment merely because the victim is no longer alive.
 - To recognize the exceptional reliability of statements made in contemplation of death.
-

Essential Ingredients of a Dying Declaration

For a statement to qualify as a dying declaration, the following conditions should be satisfied:

1. The Maker Must Be Dead

The provision applies only after the death of the person who made the statement.

If the maker survives, the statement is not a dying declaration.

2. Statement Must Relate to the Cause of Death

The declaration should explain:

- how the injuries were caused,
 - who caused them,
 - or the circumstances leading to death.
-

3. Cause of Death Must Be in Question

The statement is relevant only where the cause of the maker's death is directly in issue before the Court.

4. Statement May Be Oral, Written, or Electronic

A dying declaration may be made:

- orally,
 - in writing,
 - by signs,
 - by gestures,
 - through electronic means, where legally proved.
-

5. Statement Must Be Voluntary

The declaration should be free from:

- coercion,
 - threat,
 - tutoring,
 - influence,
 - pressure.
-

Who Can Record a Dying Declaration?

Although there is no mandatory statutory requirement, a dying declaration is preferably recorded by:

- A Judicial Magistrate (most reliable)
- An Executive Magistrate (where authorized)
- A Doctor (in emergencies)
- A Police Officer (if no Magistrate is available)
- Any independent person present at the scene (in exceptional circumstances)

The evidentiary value depends on the facts and circumstances of each case.

Fitness of the Declarant

Before recording a dying declaration, the person making it should be:

- conscious,
- mentally alert,
- capable of understanding questions,
- capable of giving rational answers.

Where possible, the attending doctor certifies that the declarant is in a fit mental condition to make the statement.

Whether Oath is Necessary?

No.

A dying declaration is admissible even though:

- it is not made on oath,
 - the maker is not subjected to cross-examination.
-

Whether Expectation of Death is Necessary?

Unlike English law, **Indian law does not require that the declarant must be under expectation of imminent death.**

It is sufficient if:

- the statement relates to the cause or circumstances of death, and
- the declarant subsequently dies.

This is one of the distinctive features of Indian evidence law.

Forms of Dying Declaration

1. Oral Dying Declaration

The deceased verbally narrates the circumstances of death.

Example:

"I was stabbed by A."

2. Written Dying Declaration

The victim writes the statement before death.

3. Dying Declaration by Gestures or Signs

Where the victim cannot speak but is conscious, answers may be conveyed through:

- nodding,
- hand movements,
- eye blinking,
- other intelligible gestures.

Such gestures must be properly interpreted and recorded.

4. Electronic Dying Declaration

Where legally proved, statements recorded through:

- video recording,
- audio recording,
- electronic communication,

may also constitute a dying declaration.

Illustrations

Illustration 1

A woman suffering from fatal burn injuries states before a Magistrate:

"My husband poured kerosene on me and set me on fire."

She dies the next day.

The statement is a valid dying declaration.

Illustration 2

A victim writes on a piece of paper:

"B stabbed me during an argument."

The victim later dies.

The written statement is admissible.

Illustration 3

A victim is unable to speak but answers questions by nodding.

The Magistrate records the questions and the victim's gestures.

The statement may be treated as a dying declaration if the gestures clearly convey the answers.

Evidentiary Value of Dying Declaration

A dying declaration is:

- substantive evidence,
- admissible despite being hearsay,
- capable of forming the basis of conviction.

However, the Court must be satisfied that it is:

- voluntary,
 - truthful,
 - reliable,
 - free from tutoring or prompting.
-

Whether Conviction Can Be Based Solely on a Dying Declaration?

Yes.

If the Court finds that the dying declaration is:

- genuine,
- voluntary,
- coherent,
- inspires confidence,

a conviction may be based solely on it without corroboration.

However, if the declaration appears doubtful, inconsistent, or suspicious, the Court ordinarily seeks corroborative evidence.

Multiple Dying Declarations

Where there are several dying declarations:

- If they are consistent, they strengthen the prosecution case.
- If they are contradictory, the Court examines which declaration is more reliable.
- Material inconsistencies may reduce their evidentiary value.

Circumstances Reducing Evidentiary Value

A dying declaration may be rejected if:

- the maker was unconscious,
- the statement was obtained through tutoring,
- the declarant lacked mental fitness,
- there are serious contradictions,
- the declaration appears fabricated or unreliable.

Difference between Dying Declaration and Dying Deposition

Dying Declaration

Recorded without oath.

Dying Deposition

Recorded on oath.

Dying Declaration

Dying Deposition

No opportunity for cross-examination. Cross-examination is permitted.

Admissible under Section 26(1).

Recorded during judicial proceedings.

Used after the death of the maker.

Forms part of judicial evidence.

Difference between Dying Declaration and Confession

Dying Declaration

Confession

Made by the deceased.

Made by the accused.

Relates to the cause or circumstances of death. Relates to the commission of an offence.

Used to establish the prosecution case.

Used as evidence against the maker.

Landmark Case Laws

1. Khushal Rao v. State of Bombay (1958)

Held

The Supreme Court held that:

- A truthful and voluntary dying declaration can form the sole basis of conviction.
- There is no rule of law requiring corroboration in every case.

Principle

A reliable dying declaration is substantive evidence.

2. Laxman v. State of Maharashtra (2002)

Held

The Supreme Court held that:

- Certification by a doctor regarding the fitness of the declarant is desirable but **not an absolute legal requirement**.
- What is essential is that the Court is satisfied that the declarant was mentally fit.

Principle

Mental fitness is more important than formal certification.

3. Paniben v. State of Gujarat (1992)

Held

The Court summarized the principles governing dying declarations and held that a voluntary and reliable declaration can sustain a conviction without corroboration.

4. P. V. Radhakrishna v. State of Karnataka (2003)

Held

The Court observed that the evidentiary value of a dying declaration depends upon its truthfulness, voluntariness, and consistency.

5. Sham Shankar Kankaria v. State of Maharashtra (2006)

Held

The Supreme Court reiterated that if a dying declaration inspires confidence, it can form the sole basis for conviction.

6. State of Uttar Pradesh v. Ram Sagar Yadav (1985)

Held

The Court held that where multiple dying declarations are inconsistent on material particulars, the Court must carefully scrutinize their reliability before acting upon them.

Critical Analysis

Merits

- Preserves crucial evidence that would otherwise be lost.
- Provides an important exception to the hearsay rule.
- Assists in punishing offenders where the victim is no longer alive.
- Reflects the belief that a person facing death is unlikely to make false accusations.
- Promotes the effective administration of criminal justice.

Limitations

- The maker cannot be cross-examined.
 - There is a possibility of tutoring or external influence.
 - The declarant's physical or mental condition may affect the accuracy of the statement.
 - Courts must exercise great caution while evaluating such evidence.
-

Examination-Oriented Points

- **Section 26(1) of the Bharatiya Sakshya Adhiniyam, 2023** deals with dying declarations and substantially corresponds to **Section 32(1) of the Indian Evidence Act, 1872**.
 - A dying declaration is an **exception to the rule against hearsay**.
 - The declaration must relate to **the cause of death or the circumstances of the transaction resulting in death**.
 - The maker must subsequently **die**, and the **cause of death must be in question**.
 - A dying declaration may be **oral, written, by signs, gestures, or electronic means**, provided it is legally proved.
 - **Expectation of imminent death is not essential under Indian law**.
 - A truthful and voluntary dying declaration **may by itself form the sole basis of conviction**.
 - Leading authorities include **Khushal Rao v. State of Bombay**, **Laxman v. State of Maharashtra**, **Paniben v. State of Gujarat**, **P. V. Radhakrishna v. State of Karnataka**, **Sham Shankar Kankaria v. State of Maharashtra**, and **State of Uttar Pradesh v. Ram Sagar Yadav**.
-

Conclusion

Section 26(1) of the Bharatiya Sakshya Adhiniyam, 2023 embodies a significant exception to the hearsay rule by recognizing the evidentiary value of dying declarations. The provision is founded on the belief that a person on the verge of death is unlikely to make a false statement regarding the cause of death. Although such a declaration is admissible without oath or cross-examination, courts must carefully examine its voluntariness, truthfulness, and reliability. Where the declaration inspires full confidence, it is sufficient to sustain a conviction even in the absence of corroborative evidence, thereby serving as an important instrument in the administration of criminal justice.

Topic 5

Judgments of Courts When Relevant (Sections 34–38)

Introduction

A **judgment** is the formal decision of a Court determining the rights, liabilities, or legal status of the parties after considering the facts and the applicable law. Generally, a judgment binds **only the parties to the case** and does not constitute evidence in another proceeding. However, the **Bharatiya Sakshya Adhiniyam, 2023 (BSA)** recognizes certain situations where judgments of Courts become relevant in subsequent proceedings.

The provisions relating to the relevancy of judgments are contained in **Sections 34 to 38** of the Bharatiya Sakshya Adhiniyam, 2023. These provisions substantially correspond to **Sections 40 to 44 of the Indian Evidence Act, 1872**.

The object of these provisions is to avoid conflicting decisions, ensure finality of litigation, and permit reliance on judgments that determine legal status or are otherwise made relevant by law.

Meaning of Judgment

A **judgment** is the final decision of a Court explaining the reasons for its decision and determining the rights or liabilities of the parties.

A judgment generally contains:

- Statement of facts.
 - Issues involved.
 - Appreciation of evidence.
 - Findings of the Court.
 - Reasons for the decision.
 - Final order or decree.
-

General Rule

The general principle is:

A judgment is relevant only between the parties to that judgment.

It is ordinarily **not evidence against strangers** who were neither parties to the proceedings nor represented therein.

Sections 34–38 provide important exceptions to this rule.

Section 34 – Previous Judgments Relevant to Bar a Second Suit or Trial

Principle

Section 34 makes relevant those judgments which by law:

- prevent a Court from taking cognizance of a suit, or
- bar a second trial for the same offence or issue.

This provision is based on the principles of:

- **Res Judicata** (Civil Law)
 - **Autrefois Acquit**
 - **Autrefois Convict**
 - **Double Jeopardy**
-

Object of Section 34

The provision aims to:

- Prevent repeated litigation.
 - Protect individuals from multiple trials for the same cause.
 - Ensure certainty and finality in judicial decisions.
 - Save judicial time.
-

Illustrations

Civil Case

A files a suit claiming ownership of land.

The suit is finally decided.

A cannot institute another suit on the same issue.

The earlier judgment becomes relevant.

Criminal Case

A is acquitted of murder.

He cannot ordinarily be tried again for the same offence.

The previous judgment is relevant.

Constitutional Connection

Section 34 is closely connected with:

Article 20(2) of the Constitution of India

which guarantees protection against **double jeopardy**.

Landmark Case

Sangeetaben Mahendrabhai Patel v. State of Gujarat (2012)

Held

The Supreme Court explained the scope of double jeopardy and observed that the constitutional protection applies only where the ingredients of the offences and the earlier prosecution satisfy the legal requirements.

Section 35 – Judgments in Rem

Meaning

Section 35 declares that certain judgments are **conclusive proof** regarding the legal status determined by them.

Such judgments are known as **Judgments in Rem**.

Meaning of Judgment in Rem

A judgment in rem determines:

- legal character,
- legal status,
- or rights enforceable against the whole world.

It binds not only the parties but every person.

Examples

Judgments relating to:

- Marriage

- Divorce
 - Nullity of marriage
 - Probate of a Will
 - Letters of Administration
 - Insolvency
 - Admiralty jurisdiction
 - Guardianship (where applicable)
-

Essential Conditions

For Section 35 to apply:

1. The judgment must be delivered by a competent Court.
 2. The Court must possess jurisdiction.
 3. The judgment must determine legal status or legal character.
 4. The judgment must be final.
-

Effect of Judgment in Rem

Such judgments are:

- Relevant.
 - Admissible.
 - Conclusive proof of the legal status declared.
-

Illustration

A Family Court grants a decree of divorce.

The judgment conclusively establishes that the marriage has been dissolved.

Landmark Case

Surinder Kumar v. Gian Chand (1957)

Principle

A probate judgment operates as a judgment in rem and binds all persons.

Section 36 – Relevancy of Judgments Relating to Public Matters

Principle

Judgments relating to matters of:

- Public nature,
- Public rights,
- Public customs,
- Public interests,

are relevant if they concern issues of public importance.

Examples

- Public road
 - Public pathway
 - Public river
 - Village common land
 - Public religious rights
 - Public easements
-

Illustration

A Court declares that a road is a public road.

That judgment becomes relevant in subsequent litigation concerning the same public right.

Importance

This provision avoids repeated litigation concerning identical public rights.

Landmark Case

Collector of Gorakhpur v. Ram Sundar Mal (1934)

Principle

Judgments determining public rights are relevant in later proceedings involving the same public issue.

Section 37 – Judgments Relevant under Other Provisions

Principle

Judgments not covered under Sections 34, 35, or 36 become relevant only when their relevance is recognized by some other provision of the Bharatiya Sakshya Adhiniyam.

Thus, judgments are not automatically admissible merely because they exist.

Illustration

A judgment may become relevant to:

- prove motive,
- establish identity,
- show previous conduct,
- explain surrounding circumstances,

if another provision of the Act specifically permits it.

Importance

Section 37 prevents indiscriminate use of previous judgments while allowing their use where legally justified.

Section 38 – Fraud, Collusion or Want of Jurisdiction

Principle

Even where a judgment is otherwise relevant, any party may prove that it was:

- obtained by fraud,
 - obtained by collusion,
 - delivered by a Court lacking jurisdiction.
-

Object

The law does not permit fraudulent or collusive judgments to create legal rights.

Illustration

A obtains a decree by suppressing material facts.

The opposite party may prove that the judgment was obtained by fraud.

Fraud

Fraud includes:

- False representation.
 - Concealment of material facts.
 - Forged documents.
 - Misleading the Court.
-

Collusion

Collusion means a secret agreement between parties to obtain a judgment for an improper purpose.

Want of Jurisdiction

If the Court lacked:

- territorial jurisdiction,
- pecuniary jurisdiction,
- subject-matter jurisdiction,

its judgment may be challenged under Section 38.

Difference between Judgment in Rem and Judgment in Personam

Judgment in Rem

Binds the whole world.

Determines legal status.

Judgment in Personam

Binds only the parties and their representatives.

Determines private rights.

Judgment in Rem

Conclusive proof under Section 35.

Examples: Divorce, Probate, Insolvency.

Judgment in Personam

Generally not relevant against strangers.

Examples: Contract disputes, Recovery suits, Property disputes between individuals.

Difference between Sections 34 and 35

Section 34

Relates to judgments barring subsequent suits or trials.

Based on finality of litigation.

Applies mainly to res judicata and double jeopardy.

Section 35

Relates to judgments determining legal status.

Based on judgments in rem.

Applies to probate, divorce, insolvency, etc.

Landmark Case Laws

1. Duchess of Kingston's Case (1776)

Principle

The classic distinction between **judgments in rem** and **judgments in personam** was explained.

2. Sangeetaben Mahendrabhai Patel v. State of Gujarat (2012)

Held

The Supreme Court explained the doctrine of double jeopardy and its application.

3. Surinder Kumar v. Gian Chand (1957)

Held

A probate judgment is a judgment in rem and binds all persons.

4. Collector of Gorakhpur v. Ram Sundar Mal (1934)

Held

Judgments relating to public rights are relevant in later proceedings involving the same public issues.

5. Badami v. Bhali (2012)

Held

The Supreme Court reiterated that **fraud vitiates every judicial act**, and a judgment obtained by fraud is a nullity.

6. S.P. Chengalvaraya Naidu v. Jagannath (1994)

Held

The Supreme Court held that a decree obtained by fraud has no legal sanctity and can be challenged at any stage.

Critical Analysis

Merits

- Ensures consistency in judicial decisions.
- Prevents multiplicity of proceedings.
- Gives finality to litigation.
- Protects public rights and legal status.
- Prevents abuse of judicial process through fraudulent decrees.

Limitations

- Most judgments are binding only upon the parties.
 - Determining whether a judgment is in rem or in personam may sometimes be complex.
 - Fraud and collusion often require extensive evidence to establish.
-

Examination-Oriented Points

- **Sections 34–38** of the Bharatiya Sakshya Adhiniyam, 2023 deal with the **relevancy of judgments**.
- **Section 34** relates to judgments that bar a second suit or trial (res judicata and double jeopardy).
- **Section 35** deals with **judgments in rem**, which are **conclusive proof** of legal status.
- **Section 36** makes judgments relating to **public rights and public matters** relevant.

- **Section 37** provides that other judgments are relevant only if made so by another provision of the Act.
 - **Section 38** permits parties to challenge an otherwise relevant judgment on the grounds of **fraud, collusion, or want of jurisdiction**.
 - A **judgment in rem binds the whole world**, whereas a **judgment in personam binds only the parties**.
 - Leading authorities include **Duchess of Kingston's Case**, **Sangeetaben Mahendrabhai Patel v. State of Gujarat**, **Surinder Kumar v. Gian Chand**, **Collector of Gorakhpur v. Ram Sundar Mal**, **Badami v. Bhali**, and **S.P. Chengalvaraya Naidu v. Jagannath**.
-

Conclusion

Sections 34 to 38 of the Bharatiya Sakshya Adhiniyam, 2023 lay down the circumstances in which judgments of Courts become relevant in subsequent proceedings. While the general rule is that judgments bind only the parties to the litigation, the Act recognizes important exceptions for judgments that determine legal status, affect public rights, or bar repeated litigation. At the same time, the Act safeguards the integrity of the judicial process by permitting challenges to judgments obtained through fraud, collusion, or lack of jurisdiction. These provisions promote certainty, finality, and fairness in the administration of justice.

Topic 6

Opinions of Third Persons When Relevant (Sections 39–45)

Introduction

The general rule of the **Bharatiya Sakshya Adhiniyam, 2023 (BSA)** is that **witnesses must testify only about facts and not their opinions**. The duty of a witness is to state what he has seen, heard, or perceived, while it is the Court that draws conclusions from those facts.

However, there are certain situations where the Court requires the assistance of persons possessing **special knowledge, skill, experience, or familiarity** with a particular subject. In such cases, the opinions of third persons become relevant. These exceptions are provided under **Sections 39 to 45** of the Bharatiya Sakshya Adhiniyam, 2023, which substantially correspond to **Sections 45 to 51 of the Indian Evidence Act, 1872**.

These provisions recognize that expert knowledge and informed opinions may assist the Court in reaching a just decision on matters beyond ordinary human understanding.

General Rule

Opinion evidence is generally inadmissible.

The Court decides questions of fact and law based on evidence, not on the opinions of witnesses.

Exception:

Where the Act expressly provides, the opinions of third persons become relevant.

Meaning of Opinion

An **opinion** is a conclusion, belief, or inference formed by a person regarding a particular matter.

Example:

A doctor states that a person's injuries were sufficient to cause death.

This is an opinion based on medical expertise.

Meaning of Third Person

A **third person** is any person other than the parties to the case who possesses relevant knowledge, expertise, or familiarity with the matter under consideration.

Examples:

- Medical expert
 - Handwriting expert
 - Fingerprint expert
 - Ballistics expert
 - Cyber forensic expert
 - Scientist
 - Chartered Accountant
 - Engineer
 - Person acquainted with handwriting
 - Person acquainted with family relationships
-

Object of Sections 39–45

The objectives are:

- To assist the Court in technical matters.
 - To enable proper appreciation of scientific evidence.
 - To determine questions requiring special skill or experience.
 - To aid the Court in matters relating to identity, customs, handwriting, digital evidence, and family relationships.
-

Section 39 – Opinions of Experts

Meaning

Section 39 makes the opinion of experts relevant whenever the Court has to form an opinion upon:

- Science
 - Art
 - Foreign law
 - Identity of handwriting
 - Finger impressions
 - Digital or electronic evidence
 - Any other field requiring specialized knowledge
-

Who is an Expert?

An **expert** is a person who has acquired special knowledge, skill, training, education, or experience in a particular field.

An expert assists the Court but does not decide the case.

Examples of Experts

- Medical Practitioner
- Forensic Scientist
- Ballistics Expert
- Fingerprint Expert
- DNA Expert
- Cyber Expert

- Handwriting Expert
 - Chemical Examiner
 - Toxicologist
 - Chartered Accountant
 - Engineer
-

Value of Expert Opinion

Expert opinion is:

- Relevant.
- Advisory in nature.
- Not binding upon the Court.

The Court may accept or reject it after evaluating the entire evidence.

Illustration

A document is alleged to be forged.

A handwriting expert compares the disputed signature with admitted signatures and expresses an opinion.

The opinion becomes relevant under Section 39.

Landmark Case

Murari Lal v. State of Madhya Pradesh (1980)

Held

The Supreme Court held that expert evidence is advisory in nature and should ordinarily be corroborated by other evidence.

Section 40 – Facts Bearing upon Opinions of Experts

Principle

Whenever an expert opinion is relevant, the facts upon which the opinion is based also become relevant.

Example

A doctor gives an opinion based upon:

- X-ray reports
- Blood tests
- Post-mortem findings

These underlying facts are also relevant.

Importance

The Court must understand the reasons supporting an expert's conclusion.

Section 41 – Opinion as to Handwriting

Meaning

The opinion of a person acquainted with another person's handwriting is relevant.

Such acquaintance may arise through:

- Regular correspondence,
 - Business dealings,
 - Familiarity over time,
 - Observation of writing.
-

Illustration

A bank manager who has frequently seen a customer's signatures identifies a disputed signature.

His opinion is relevant.

Difference between Handwriting Expert and Acquainted Person

Handwriting Expert

Gives opinion based on scientific comparison.

Requires specialized knowledge.

Person Acquainted with Handwriting

Gives opinion based on familiarity.

No technical qualification required.

Handwriting Expert

Opinion based on examination.

Person Acquainted with Handwriting

Opinion based on personal acquaintance.

Landmark Case**Fakhruddin v. State of Madhya Pradesh (1967)****Held**

The Supreme Court held that handwriting may be proved by:

- Expert evidence,
 - A person acquainted with the handwriting,
 - Comparison by the Court itself where legally permissible.
-

Section 42 – Opinion as to Digital Signature**Meaning**

Where the Court has to determine whether a digital signature belongs to a particular person, the opinion of the appropriate expert becomes relevant.

Importance

With increasing use of:

- Electronic contracts,
- E-governance,
- Digital banking,
- Online transactions,

this provision has acquired significant practical importance.

Example

A cyber expert certifies that a digital signature belongs to the accused.

His opinion becomes relevant.

Section 43 – Opinion Regarding Existence of General Custom or Right

Meaning

Where the Court has to determine the existence of:

- General custom,
- Public usage,
- Traditional rights,

the opinions of persons likely to know such customs become relevant.

Examples

- Village customary pathway.
 - Religious customs.
 - Community marriage practices.
 - Traditional rights over common land.
-

Landmark Case

Thakur Gokal Chand v. Parvin Kumari (1952)

Held

The Supreme Court held that a custom must be:

- Ancient,
- Certain,
- Reasonable,
- Continuous,

before it is recognized by law.

Section 44 – Opinion Regarding Relationship

Meaning

Where the Court has to determine family relationship, the opinion of persons having **special means of knowledge** is relevant.

Persons Having Special Means of Knowledge

Examples:

- Elder family members.
- Close relatives.
- Long-standing family servants.
- Family priests.
- Persons maintaining family records.

Illustration

A dispute arises regarding legitimacy.

An elderly family member who has known the family for decades gives evidence regarding the relationship.

His opinion is relevant.

Landmark Case

Dolgobinda Paricha v. Nimai Charan Misra (1959)

Held

The Supreme Court held that opinions regarding relationship are admissible only where the witness has special means of knowledge.

Section 45 – Grounds of Opinion

Principle

Whenever the opinion of a third person is relevant, the **grounds or reasons** supporting that opinion also become relevant.

Importance

The Court is not expected to accept an opinion blindly.

It examines:

- Method adopted.
 - Scientific basis.
 - Supporting materials.
 - Reasons assigned.
-

Illustration

A forensic expert concludes that a firearm was used.

The ballistic tests supporting that conclusion also become relevant.

Evidentiary Value of Opinion Evidence

Opinion evidence:

- Is relevant.
- Is advisory.
- Is not conclusive.
- Must be evaluated with other evidence.
- Usually requires corroboration.

The Court is not bound by an expert's opinion if it appears unreasonable or inconsistent with the facts.

Difference between Fact Evidence and Opinion Evidence

Fact Evidence	Opinion Evidence
States facts personally perceived.	States conclusions drawn from facts.
General rule of admissibility.	Admissible only where the Act permits.
Given by ordinary witnesses.	Usually given by experts or specially qualified persons.

Difference between Expert Witness and Ordinary Witness

Expert Witness	Ordinary Witness
Possesses specialized knowledge.	States facts personally observed.

Expert Witness

Gives opinions.

Assists the Court in technical matters. Assists the Court regarding factual events.

Ordinary Witness

Does not ordinarily give opinions.

Landmark Case Laws**1. Murari Lal v. State of Madhya Pradesh (1980)****Held**

Expert evidence is advisory and ordinarily requires corroboration.

2. Fakhruddin v. State of Madhya Pradesh (1967)**Held**

Handwriting may be proved through expert opinion, acquaintance, or comparison by the Court.

3. Ram Chandra v. State of Uttar Pradesh (1957)**Held**

Expert opinion is only one piece of evidence and cannot override convincing direct evidence.

4. State (Delhi Administration) v. Pali Ram (1979)**Held**

The Supreme Court recognized the Court's power to compare disputed handwriting with admitted writings while exercising caution.

5. Thakur Gokal Chand v. Parvin Kumari (1952)**Held**

Explained the legal requirements for proving a valid custom.

6. Dolgobinda Paricha v. Nimai Charan Misra (1959)**Held**

Relationship evidence is admissible only where the witness possesses special means of knowledge.

7. Magan Bihari Lal v. State of Punjab (1977)

Held

The Supreme Court observed that handwriting expert evidence is comparatively weak and should ordinarily be corroborated by other reliable evidence.

Critical Analysis

Merits

- Enables the Court to decide technical and scientific issues accurately.
- Facilitates adjudication in complex cases involving medicine, forensics, cybercrime, engineering, and digital evidence.
- Recognizes the growing importance of scientific methods in modern litigation.
- Assists the Court in understanding specialized subjects beyond ordinary knowledge.

Limitations

- Expert opinions may differ.
 - Some expert evidence may be biased or influenced by the party calling the expert.
 - Opinion evidence is not substantive proof by itself.
 - Courts must independently evaluate the credibility and reasoning of expert witnesses.
-

Examination-Oriented Points

- **Sections 39–45** of the Bharatiya Sakshya Adhiniyam, 2023 deal with the **opinions of third persons when relevant**.
- The **general rule** is that opinion evidence is **inadmissible**, except where expressly permitted by the Act.
- **Section 39** recognizes the opinions of experts in matters requiring specialized knowledge.
- **Section 40** makes the facts forming the basis of an expert's opinion relevant.
- **Section 41** deals with the opinion of persons acquainted with another's handwriting.
- **Section 42** relates to opinions regarding digital signatures.

- **Section 43** concerns opinions regarding general customs or public rights.
 - **Section 44** makes opinions regarding family relationships relevant where the witness has special means of knowledge.
 - **Section 45** provides that the grounds on which such opinions are based are also relevant.
 - Expert opinion is **advisory, not conclusive**, and should ordinarily be assessed along with other evidence.
 - Leading cases include **Murari Lal v. State of Madhya Pradesh, Fakhruddin v. State of Madhya Pradesh, Ram Chandra v. State of Uttar Pradesh, State (Delhi Administration) v. Pali Ram, Thakur Gokal Chand v. Parvin Kumari, Dolgobinda Paricha v. Nimai Charan Misra, and Magan Bihari Lal v. State of Punjab.**
-

Conclusion

Sections 39 to 45 of the Bharatiya Sakshya Adhiniyam, 2023 recognize that while the Court is the ultimate authority to determine facts, it may require assistance from persons possessing specialized knowledge or particular familiarity with the subject matter. Accordingly, the Act makes the opinions of experts and certain other qualified persons relevant in specified circumstances. Nevertheless, such opinions are **advisory rather than conclusive**, and the Court must independently assess their reliability in the light of the entire evidence on record. These provisions ensure that judicial decisions benefit from scientific, technical, and specialized expertise while preserving the Court's role as the final arbiter of facts and law.

UNIT – III

Topic 1

Facts Which Need Not Be Proved (Sections 51–53)

Introduction

In every judicial proceeding, the general rule is that **the party who asserts a fact must prove it**. This principle is reflected in the law relating to the burden of proof. However, there are certain facts which the law considers so obvious, certain, admitted, or indisputable that requiring formal proof would unnecessarily delay judicial proceedings.

The **Bharatiya Sakshya Adhiniyam, 2023 (BSA)** therefore provides that certain facts **need not be proved**. These provisions are contained in **Sections 51 to 53**, which substantially correspond to **Sections 56 to 58 of the Indian Evidence Act, 1872**.

These provisions save the time of the Court, reduce litigation expenses, and promote speedy justice by dispensing with proof of facts that are either judicially noticeable or admitted by the parties.

Meaning of "Facts Need Not Be Proved"

These are facts which the Court accepts **without requiring formal evidence** because:

- they are judicially noticeable,
 - they are matters of common knowledge,
 - they are officially recognized,
 - or they have been expressly admitted by the parties.
-

Object of Sections 51–53

The objectives are:

- To avoid unnecessary proof.
 - To save judicial time.
 - To simplify court proceedings.
 - To prevent wastage of public resources.
 - To promote speedy and efficient administration of justice.
-

Section 51 – Facts Judicially Noticeable Need Not Be Proved

Statutory Principle

Section 51 lays down the general rule:

No fact of which the Court will take judicial notice needs to be proved.

Thus, where the Court is legally bound to take judicial notice of a fact, no evidence is required.

Meaning of Judicial Notice

Judicial Notice means:

The recognition by the Court of certain facts without requiring any formal proof.

The Court accepts such facts because they are:

- universally known,
- officially recorded,

- or incapable of reasonable dispute.
-

Nature of Judicial Notice

Judicial notice is:

- Mandatory where the Act requires it.
 - Based upon certainty.
 - Accepted without witnesses or documents.
 - Intended to avoid unnecessary litigation.
-

Illustration

The Court need not require evidence to prove that:

- India is a sovereign democratic republic.
- New Delhi is the capital of India.
- The sun rises in the east.
- There are seven days in a week.

These are matters of common knowledge.

Section 52 – Facts of Which Court Shall Take Judicial Notice

Section 52 specifies various matters of which every Court **shall take judicial notice**.

These include the following:

1. Laws in Force in India

Courts take judicial notice of:

- The Constitution of India.
- Central Acts.
- State Acts.
- Statutory Rules.
- Notifications having statutory force.

No party is required to prove them.

2. Public Acts of Parliament

Every Court recognizes Acts enacted by Parliament without requiring certified copies.

3. Official Seals

The Court recognizes official seals of:

- Government Departments.
 - Constitutional Authorities.
 - Courts.
 - Public Offices.
-

4. National Flag and National Emblem

The Court takes judicial notice of:

- National Flag.
 - State Emblem.
 - Official insignia.
-

5. Accession and Signatures of Public Officers

Courts recognize:

- Appointment of the President.
- Governors.
- Judges.
- Constitutional Authorities.

without requiring proof.

6. Divisions of Time

The Court recognizes:

- Calendar.
 - Months.
 - Years.
 - Public holidays.
 - Standard time.
-

7. Geographical Facts

Examples:

- India is situated in Asia.
 - The Ganga flows through Uttar Pradesh.
 - Himalayas lie in northern India.
-

8. Public Festivals and Holidays

The Court takes judicial notice of officially declared public holidays.

Examples:

- Republic Day
 - Independence Day
 - Gandhi Jayanti
-

9. Territorial Divisions

The Court recognizes:

- States,
 - Union Territories,
 - Districts,
 - Official boundaries established by law.
-

10. Course of Nature

Examples:

- Fire burns.
 - Water flows downward.
 - Ice melts upon heating.
 - Gravity acts on objects.
-

11. Matters of Public History

Courts recognize universally accepted historical facts.

Example:

India became independent on **15 August 1947**.

Whether the Court May Consult Books?

Yes.

Where necessary, the Court may consult:

- Official Gazettes.
- Government publications.
- Standard reference books.
- Maps.
- Official records.

before taking judicial notice.

Illustration

Suppose a dispute concerns whether **26 January** is a national holiday.

The Court need not ask for evidence because it takes judicial notice that **Republic Day is a national holiday in India**.

Section 53 – Facts Admitted Need Not Be Proved

Principle

Section 53 provides:

Facts admitted by the parties need not be proved.

Admissions may be:

- Oral.
 - Written.
 - Made in pleadings.
 - Made during trial.
 - Made through advocates.
 - Recorded by the Court.
-

Object

This provision:

- narrows the issues,
 - saves judicial time,
 - prevents unnecessary evidence,
 - simplifies the trial.
-

Forms of Admission

(A) Admission in Pleadings

Example:

The defendant admits that he executed the agreement.

No further proof is required.

(B) Admission During Trial

A party expressly admits a fact before the Court.

The Court may treat that fact as proved.

(C) Written Admission

Admissions contained in:

- letters,
- agreements,
- affidavits,
- notices,
- electronic records,

may dispense with formal proof.

(D) Admission by Counsel

An admission made by an advocate during proceedings, within the scope of authority, may bind the client and relieve the opposite party from proving the admitted fact.

Whether Court May Still Require Proof?

Yes.

Although admitted facts generally need not be proved, the Court may require proof if:

- the admission appears doubtful,
- fraud is suspected,
- collusion is alleged,
- the admission is ambiguous,
- public interest requires proof,
- the law specifically mandates proof.

Thus, the Court retains discretion to insist upon evidence in appropriate cases.

Illustrations

Illustration 1

A files a suit alleging that B borrowed ₹5,00,000.

B admits borrowing the amount.

The loan need not be proved.

Illustration 2

In a partition suit, all parties admit the genealogy.

No evidence regarding family relationship is required.

Illustration 3

In a criminal trial, the accused admits ownership of the vehicle involved in the offence.

The prosecution need not prove ownership separately.

Judicial Notice vs Admission

Judicial Notice

Recognized by law.

No evidence required.

Based upon common or official knowledge.

Court acts independently.

Admission

Accepted because parties admit the fact.

No evidence required.

Based upon agreement or concession by parties.

Court relies upon admissions of parties.

Difference between Judicial Notice and Proof

Judicial Notice

No evidence required.

Court recognizes fact automatically.

Applies to indisputable facts.

Proof

Evidence must be produced.

Court decides after evaluating evidence.

Applies to disputed facts.

Landmark Case Laws

1. State of West Bengal v. Mir Mohammad Omar (2000)

Held

The Supreme Court observed that judicial notice may be taken of facts that are so well established and universally accepted that no reasonable person would dispute them.

Principle

Courts need not insist upon proof of universally accepted facts.

2. Nagindas Ramdas v. Dalpatram Ichharam (1974)

Held

The Supreme Court held that admissions made in pleadings constitute the **best evidence** against the party making them and ordinarily dispense with the need for further proof.

Principle

Admissions simplify litigation and bind the maker unless withdrawn or explained.

3. Avadh Kishore Das v. Ram Gopal (1979)

Held

Admissions are substantive evidence and generally relieve the opposite party from proving the admitted facts.

4. Union of India v. Ibrahim Uddin (2012)

Held

The Supreme Court held that while admitted facts ordinarily require no proof, the Court may insist on evidence where justice so demands, particularly if the admission appears doubtful or unreliable.

5. Sita Ram Bhau Patil v. Ramchandra Nago Patil (1977)

Held

The Court emphasized that judicial admissions made during proceedings are binding upon the parties unless permitted to be withdrawn.

Critical Analysis

Merits

- Saves judicial time and costs.
- Avoids unnecessary production of evidence.
- Speeds up disposal of cases.

- Prevents repetitive litigation over undisputed facts.
- Encourages fair admissions and efficient trial management.

Limitations

- Incorrect or mistaken admissions may prejudice a party.
- Judicial notice is confined to facts that are beyond reasonable dispute.
- Courts must exercise caution where admissions appear to result from fraud, coercion, or misunderstanding.

Examination-Oriented Points

- **Sections 51–53** of the Bharatiya Sakshya Adhiniyam, 2023 deal with **facts which need not be proved**.
- **Section 51** states that **facts of which the Court takes judicial notice need not be proved**.
- **Section 52** specifies the categories of facts of which the Court **shall take judicial notice**, such as laws in force, official seals, national symbols, territorial divisions, public holidays, and matters of common knowledge.
- **Section 53** provides that **facts admitted by the parties need not be proved**, though the Court may require proof in appropriate cases.
- Judicial notice is based on **legal recognition**, whereas admissions are based on **concessions made by the parties**.
- Leading authorities include **State of West Bengal v. Mir Mohammad Omar**, **Nagindas Ramdas v. Dalpatram Ichharam**, **Avadh Kishore Das v. Ram Gopal**, **Union of India v. Ibrahim Uddin**, and **Sita Ram Bhau Patil v. Ramchandra Nago Patil**.

Conclusion

Sections 51 to 53 of the Bharatiya Sakshya Adhiniyam, 2023 embody the principle that the law does not require proof of facts that are either **judicially noticeable** or **admitted by the parties**. These provisions streamline judicial proceedings by eliminating the need to prove matters that are certain, undisputed, or officially recognized. At the same time, they preserve the Court's discretion to insist on proof where the interests of justice require it. By balancing procedural efficiency with fairness, these sections play a vital role in the effective administration of justice.

Topic 2

Kinds of Evidence – Oral and Documentary Evidence, Primary and Secondary Evidence, Public and Private Documents (Sections 54–60, 64 & 74–77)

Introduction

The **Bharatiya Sakshya Adhiniyam, 2023 (BSA)** recognizes **evidence** as the foundation of every judicial proceeding. Courts decide disputes based on legally admissible evidence rather than assumptions or suspicion. The Act classifies evidence into different categories to ensure that only reliable and authentic material is considered while deciding civil and criminal cases.

The principal categories of evidence under the BSA are:

- **Oral Evidence**
- **Documentary Evidence**
- **Primary Evidence**
- **Secondary Evidence**
- **Public Documents**
- **Private Documents**

These provisions are mainly contained in **Sections 54–60, 64 and 74–77** of the Bharatiya Sakshya Adhiniyam, 2023, which substantially correspond to **Sections 59–65 and 74–78 of the Indian Evidence Act, 1872**.

Meaning of Evidence

Section 2 of the Bharatiya Sakshya Adhiniyam defines **Evidence** as:

1. **Oral Evidence**—Statements made before the Court by witnesses in relation to matters of fact under inquiry.
2. **Documentary Evidence**—Documents, including electronic or digital records, produced before the Court for inspection.

Evidence must be:

- Relevant,
- Admissible,
- Reliable,
- Properly proved according to law.

Kinds of Evidence

The Bharatiya Sakshya Adhiniyam recognizes two principal kinds of evidence:

1. Oral Evidence
2. Documentary Evidence

Part I – Oral Evidence (Sections 54–55)

Meaning of Oral Evidence

Oral evidence consists of statements made before the Court by witnesses regarding facts in issue or relevant facts.

It is evidence given:

- Personally,
- On oath or affirmation,
- Before the Court.

Section 54 – Proof of Facts by Oral Evidence

Principle

All facts, except the contents of documents or electronic records, may be proved by oral evidence.

Thus:

- Events witnessed by a person may be proved orally.
- The contents of a written document cannot ordinarily be proved merely by oral testimony.

Illustration

A witness states:

"I saw A stab B."

This is admissible oral evidence.

However, if the dispute concerns the contents of a written contract, oral testimony alone is generally insufficient; the document itself must be produced unless an exception applies.

Section 55 – Oral Evidence Must Be Direct

Principle

Oral evidence must always be **direct**.

This means:

- The witness must personally perceive the fact.
 - Hearsay evidence is generally inadmissible.
-

Direct Evidence

Examples:

"I saw the accident."

"I heard the accused confess."

"I personally identified the signature."

Hearsay Evidence

Example:

"My friend told me that A committed the offence."

Such evidence is generally inadmissible because the original source cannot be cross-examined.

Exceptions to the Rule Against Hearsay

Some important exceptions include:

- Dying declaration (Section 26(1))
 - Admissions
 - Confessions (where admissible)
 - Expert opinion
 - Statements made in the ordinary course of business
 - Other statutory exceptions
-

Importance of Oral Evidence

- Enables cross-examination.

- Helps the Court observe the witness's demeanor.
 - Assists in discovering the truth.
 - Complements documentary evidence.
-

Landmark Case

Teper v. The Queen (1952)

Held

Hearsay evidence is generally excluded because the original maker of the statement is not available for cross-examination.

Part II – Documentary Evidence (Sections 56–60)

Meaning of Documentary Evidence

Documentary evidence consists of:

- Documents,
- Electronic records,
- Digital records,

produced before the Court for inspection.

Examples

- Agreements
- Sale deeds
- Wills
- Letters
- Bank records
- Government notifications
- Emails
- WhatsApp messages (subject to proof)

- CCTV recordings
 - Digital files
-

Importance

Documentary evidence is generally more reliable than oral evidence because documents preserve information in permanent form.

Section 56 – Proof of Contents of Documents

The contents of documents must ordinarily be proved by:

- Primary evidence, or
 - Secondary evidence where legally permissible.
-

Section 57 – Primary Evidence

Meaning

Primary evidence means the original document itself produced before the Court.

The original document is regarded as the **best evidence** of its contents.

Examples

- Original sale deed.
 - Original Will.
 - Original agreement.
 - Original cheque.
-

Best Evidence Rule

The law prefers production of the original document because:

- It minimizes fraud.
- It ensures authenticity.
- It reduces chances of alteration.

Section 58 – Secondary Evidence

Meaning

Secondary evidence consists of evidence other than the original document, such as:

- Certified copies,
- Photocopies,
- Carbon copies,
- Mechanical reproductions,
- Electronic copies,
- Oral accounts of document contents (where legally admissible).

When Secondary Evidence is Admissible

Secondary evidence may be admitted where:

- The original is lost.
- The original is destroyed.
- The original is in possession of the opposite party who fails to produce it despite notice.
- The original cannot be conveniently produced.
- The law specifically permits secondary evidence.

Section 59 – Cases in Which Secondary Evidence Relating to Documents May Be Given

The Court permits secondary evidence only after the party satisfactorily establishes the reason for non-production of the original document.

Section 60 – Notice to Produce

Where the original document is in possession of the opposite party, reasonable notice to produce it is ordinarily required before secondary evidence may be admitted, unless the law dispenses with such notice.

Difference between Primary and Secondary Evidence

Primary Evidence**Secondary Evidence**

Original document.

Copy or substitute for the original.

Best evidence.

Inferior form of evidence.

Preferred by law.

Admissible only in specified circumstances.

Greater evidentiary value. Lesser evidentiary value.

Section 64 – Proof of Documents by Primary Evidence**Principle**

Section 64 reinforces the **Best Evidence Rule** by providing that documents must ordinarily be proved by **primary evidence**, except where secondary evidence is admissible under the Act.

Object

- Ensures authenticity.
 - Prevents fraud.
 - Protects against fabrication.
 - Maintains reliability of documentary evidence.
-

Part III – Public and Private Documents (Sections 74–77)

Section 74 – Public Documents**Meaning**

Public documents are documents prepared or maintained by public authorities in the discharge of official duties.

Examples

- Acts of Parliament.
- Government notifications.
- Court judgments.

- Court records.
 - Birth and death registers.
 - Land revenue records.
 - Electoral rolls.
 - Official Gazette.
 - Government orders.
-

Characteristics

Public documents:

- Are prepared by public officials.
 - Are maintained under legal authority.
 - Carry a presumption of authenticity.
 - Certified copies are generally admissible.
-

Section 75 – Private Documents

Meaning

Every document other than a public document is a **private document**.

Examples

- Sale deed between private persons.
 - Lease agreement.
 - Personal diary.
 - Personal letters.
 - Private account books.
 - Family photographs.
 - Private emails.
-

Characteristics

Private documents:

- Are created by individuals.
 - Do not carry any statutory presumption of authenticity.
 - Must ordinarily be proved by the person relying upon them.
-

Difference between Public and Private Documents

Public Documents	Private Documents
Prepared by public authority.	Prepared by private individuals.
Maintained in official custody.	Usually remain in private custody.
Certified copies generally admissible. Original document generally required.	
Presumption of authenticity.	No such presumption.

Section 76 – Certified Copies of Public Documents

Any person entitled to inspect a public document may obtain a certified copy from the competent public officer.

A certified copy bears:

- Official certification,
 - Seal,
 - Signature of the authorized officer.
-

Importance

Certified copies avoid the need to produce original public records in Court.

Section 77 – Proof of Public Documents

Public documents may be proved by:

- Certified copies,
- Other legally recognized methods prescribed by law.

The original public record generally need not be produced.

Illustrations

Illustration 1

A plaintiff produces the original sale deed.

This is **primary evidence**.

Illustration 2

The original deed has been destroyed in a fire.

A certified copy is produced after proving the loss.

The certified copy may be admitted as **secondary evidence**, if the statutory requirements are fulfilled.

Illustration 3

A birth certificate issued by the Municipal Authority is produced.

Being a **public document**, its certified copy is generally admissible.

Illustration 4

A private agreement between A and B is produced.

It is a **private document** and must ordinarily be proved by primary evidence or by other legally admissible modes.

Landmark Case Laws

1. Kaliya v. State of Madhya Pradesh (2013)

Held

The Supreme Court held that secondary evidence is admissible only after the conditions prescribed by law are strictly satisfied.

2. H. Siddiqui (Dead) by LRs v. A. Ramalingam (2011)

Held

Photocopies are not automatically admissible. A proper factual foundation must first be laid for admitting secondary evidence.

3. Roman Catholic Mission v. State of Madras (1966)

Held

Secondary evidence cannot be admitted merely because the original document is not produced; the statutory conditions must be proved.

4. Sait Tarajee Khimchand v. Yelamarti Satyam (1971)

Held

Merely marking a document as an exhibit does not amount to proof of its contents.

5. State of Bihar v. Radha Krishna Singh (1983)

Held

Public documents carry a presumption of genuineness, but the Court may examine their authenticity if there are legitimate grounds for doubt.

6. LIC of India v. Ram Pal Singh Bisen (2010)

Held

Documents must be proved in accordance with the provisions of the Evidence Act; mere filing of a document does not establish its truth.

Critical Analysis

Merits

- Ensures reliability of documentary evidence.
- Encourages production of original documents.
- Prevents fraud and forgery.
- Facilitates proof of official records through certified copies.
- Recognizes electronic records in modern litigation.

Limitations

- Loss of original documents may complicate litigation.
 - Secondary evidence is often susceptible to challenge.
 - Authentication of electronic records may require technical evidence.
 - Strict procedural requirements may occasionally delay proceedings.
-

Examination-Oriented Points

- **Sections 54–60** deal with **oral and documentary evidence**, **primary evidence**, and **secondary evidence**.
 - **Section 54** provides that facts may generally be proved by oral evidence, except the contents of documents.
 - **Section 55** requires oral evidence to be **direct**, thereby excluding hearsay subject to recognized exceptions.
 - **Sections 56–60** regulate the proof of documentary evidence and the circumstances in which **secondary evidence** may be admitted.
 - **Section 64** embodies the **Best Evidence Rule**, requiring documents to be proved by **primary evidence** unless an exception applies.
 - **Section 74** defines **public documents**.
 - **Section 75** provides that all documents other than public documents are **private documents**.
 - **Section 76** authorizes the issuance of **certified copies** of public documents.
 - **Section 77** allows **certified copies** to be used for proving public documents.
 - Leading authorities include **Kaliya v. State of Madhya Pradesh**, **H. Siddiqui v. A. Ramalingam**, **Roman Catholic Mission v. State of Madras**, **Sait Tarajee Khimchand v. Yelamarti Satyam**, **State of Bihar v. Radha Krishna Singh**, and **LIC of India v. Ram Pal Singh Bisen**.
-

Conclusion

The provisions relating to oral and documentary evidence under the Bharatiya Sakshya Adhiniyam, 2023 establish the fundamental framework for proving facts before a Court. While **oral evidence** must be direct and based on personal knowledge, **documentary evidence** is ordinarily proved through **primary evidence**, with **secondary evidence** being admissible only in exceptional circumstances prescribed by law. The distinction between **public and private documents** further facilitates the proof of official records while safeguarding the authenticity of private documents. Together, these provisions ensure that

judicial decisions are based on reliable, credible, and legally admissible evidence, thereby promoting fairness and certainty in the administration of justice.

Topic 3

Electronic or Digital Records and Their Admissibility (Sections 61–63)

Introduction

The rapid advancement of information technology has transformed the way individuals, businesses, and governments create, store, and communicate information. Emails, WhatsApp messages, CCTV footage, digital photographs, computer files, cloud storage, and electronic contracts have become common sources of evidence in judicial proceedings. Recognizing this technological evolution, the **Bharatiya Sakshya Adhiniyam, 2023 (BSA)** expressly recognizes **electronic and digital records** as documentary evidence and lays down the conditions for their admissibility.

The provisions governing **electronic or digital records and their admissibility** are contained in **Sections 61 to 63** of the Bharatiya Sakshya Adhiniyam, 2023. These provisions substantially replace and modernize **Sections 65A and 65B of the Indian Evidence Act, 1872**, while continuing the principle that electronic evidence must satisfy statutory safeguards before it can be admitted in Court.

The object of these provisions is to ensure that digital evidence is **authentic, reliable, and protected from manipulation or tampering**.

Meaning of Electronic or Digital Record

An **Electronic or Digital Record** means information created, stored, received, transmitted, or reproduced in electronic form through computers, mobile devices, servers, or other digital systems.

Electronic records are treated as **documentary evidence** under the Bharatiya Sakshya Adhiniyam.

Examples of Electronic or Digital Records

- E-mails
- WhatsApp chats
- SMS messages
- CCTV recordings
- Mobile phone recordings
- Audio recordings
- Video recordings

- Digital photographs
 - Computer files
 - PDF documents
 - Electronic contracts
 - Digital signatures
 - Call Detail Records (CDRs)
 - GPS location data
 - Pen drive or USB data
 - Hard disk or SSD data
 - Cloud-stored documents
 - Social media posts (Facebook, X, Instagram, etc.)
-

Object of Sections 61–63

The objectives are:

- To recognize electronic evidence as legally admissible.
 - To ensure authenticity of digital records.
 - To prevent fabrication and manipulation of electronic evidence.
 - To facilitate the use of modern technology in judicial proceedings.
 - To balance technological advancement with procedural fairness.
-

Section 61 – Admissibility of Electronic or Digital Records

Principle

Section 61 recognizes that **electronic or digital records are admissible as evidence**, subject to the conditions prescribed by the Bharatiya Sakshya Adhiniyam.

Electronic records are treated on the same footing as documentary evidence, provided that their authenticity and integrity are established.

Nature of Electronic Evidence

Electronic evidence includes:

- Original electronic records,
- Computer-generated documents,
- Digital copies,
- Audio and video recordings,
- Data stored in electronic devices.

Such evidence is admissible only if it satisfies the statutory requirements intended to ensure reliability.

Illustration

A bank relies upon electronic account statements generated from its computer system to prove a financial transaction.

Such statements may be admitted if the legal conditions regarding electronic records are fulfilled.

Section 62 – Special Provisions for Admissibility of Electronic Records

Principle

Section 62 lays down the special procedure for proving electronic records.

Since electronic data can be copied, altered, or manipulated with relative ease, the law requires additional safeguards before such records are admitted.

The section substantially incorporates the principles earlier contained in **Section 65B of the Indian Evidence Act, 1872**.

Conditions for Admissibility

For an electronic record to be admissible, the following conditions should ordinarily be satisfied:

1. Regular Use of the Computer or Device

The computer or electronic device should have been regularly used to store or process information during the relevant period.

2. Information Entered in the Ordinary Course

The information should have been entered into the system during the ordinary course of business or official activity.

3. Proper Functioning of the Device

The computer or electronic device should have been functioning properly.

If there was any malfunction, it should not have affected the accuracy of the record.

4. Integrity of the Electronic Record

The electronic record should be shown to be genuine and free from unauthorized alteration or tampering.

Certificate for Electronic Records

Where an electronic record is produced in the form of a copy (such as a printout, CD, DVD, pen drive, or other electronic output), the Act generally requires a **certificate** identifying:

- the electronic record,
- the manner in which it was produced,
- the device from which it was generated,
- and that the statutory conditions have been satisfied.

This certificate is intended to establish the authenticity of the electronic evidence.

Purpose of the Certificate

The certificate:

- authenticates the electronic record,
 - assures the Court regarding its reliability,
 - minimizes the risk of tampering,
 - simplifies proof of computer-generated records.
-

Illustration

A company produces CCTV footage stored on a pen drive.

The footage is accompanied by the required statutory certificate explaining:

- the source of the footage,
- the recording system,

- the device used,
- and compliance with the statutory conditions.

The footage becomes admissible subject to judicial scrutiny.

Section 63 – Proof and Verification of Electronic Records

Principle

Section 63 provides for the proof and verification of electronic or digital records in accordance with the statutory procedure.

The Court may examine:

- the authenticity of the record,
- the integrity of the storage device,
- the reliability of the electronic system,
- and the accompanying certificate or other legally recognized mode of proof.

Importance of Section 63

The provision ensures that:

- fabricated digital evidence is excluded,
- genuine electronic records are admitted,
- confidence in electronic evidence is maintained,
- technological advancements are effectively integrated into the justice system.

Electronic Evidence as Documentary Evidence

Electronic records are a form of **documentary evidence**.

Examples include:

- Digital agreements,
- E-mails,
- Electronic invoices,
- Computer-generated statements,

- Digital photographs,
- Electronic registers.

Accordingly, they are subject to the general principles governing documentary evidence, in addition to the special provisions of Sections 61–63.

Types of Electronic Evidence

1. Primary Electronic Evidence

Examples:

- Original mobile phone.
 - Original hard disk.
 - Original CCTV storage device.
 - Original memory card.
-

2. Secondary Electronic Evidence

Examples:

- Printouts.
- Copies stored in CDs.
- DVDs.
- Pen drives.
- Electronic reproductions.

Such evidence must satisfy the statutory requirements for admissibility.

Importance of Electronic Evidence

Electronic records are widely used in:

- Criminal investigations.
- Cybercrime cases.
- Commercial disputes.
- Banking litigation.

- Matrimonial disputes.
 - Intellectual property litigation.
 - Corporate investigations.
 - Tax proceedings.
-

Digital Signature

Electronic records authenticated through **digital signatures** may also be proved in accordance with the provisions of the Bharatiya Sakshya Adhiniyam and the applicable law governing digital authentication.

Challenges in Electronic Evidence

- Possibility of tampering.
- Data manipulation.
- Hacking.
- Identity theft.
- Metadata alteration.
- Difficulty in proving authorship.
- Rapid technological changes.

Hence, statutory safeguards are essential.

Illustration

Illustration 1

A WhatsApp conversation is relied upon to prove an agreement.

The chat history, along with the necessary statutory certificate (where required), may be admitted after satisfying the Court regarding its authenticity.

Illustration 2

A CCTV recording captures the accused entering a building.

The recording is produced with the required certificate and evidence of proper functioning of the CCTV system.

It may be admitted as electronic evidence.

Illustration 3

A printout of an email is produced without establishing its authenticity or complying with the statutory requirements.

The Court may decline to admit it.

Difference between Documentary Evidence and Electronic Evidence

Documentary Evidence	Electronic Evidence
Includes paper documents and electronic records.	A specific category of documentary evidence in electronic form.
Original documents generally preferred.	Subject to additional statutory safeguards.
Usually proved through ordinary documentary rules.	Requires compliance with Sections 61–63 where applicable.

Difference between Primary and Secondary Electronic Evidence

Primary Electronic Evidence	Secondary Electronic Evidence
Original electronic device or storage medium.	Copy or reproduction of electronic data.
Greater evidentiary value.	Admissible only after satisfying statutory requirements.
Less susceptible to challenge regarding authenticity.	Requires proof of authenticity and compliance with the Act.

Landmark Case Laws

1. Anvar P.V. v. P.K. Basheer (2014)

Held

The Supreme Court held that electronic records produced as secondary evidence must comply with the statutory requirements relating to certification (then under Section 65B of the Indian Evidence Act).

Principle

Compliance with the prescribed statutory safeguards is mandatory for admissibility of secondary electronic evidence.

2. Arjun Panditrao Khotkar v. Kailash Kushanrao Gorantyal (2020)

Held

A Constitution Bench reaffirmed the principle laid down in **Anvar P.V.** and clarified the circumstances in which the statutory certificate is required.

Principle

The certificate requirement is an important safeguard for ensuring the authenticity of electronic evidence.

3. State (NCT of Delhi) v. Navjot Sandhu (Parliament Attack Case) (2005)

Held

Earlier, the Supreme Court had taken a more liberal approach towards electronic evidence.

Significance

This view was subsequently clarified and effectively superseded by **Anvar P.V.** and **Arjun Panditrao Khotkar** regarding the mandatory statutory requirements for secondary electronic evidence.

4. Tomaso Bruno v. State of Uttar Pradesh (2015)

Held

The Supreme Court emphasized the increasing importance of electronic evidence such as CCTV footage in criminal trials and observed that failure to produce available electronic evidence may, in appropriate cases, justify an adverse inference.

5. Sonu @ Amar v. State of Haryana (2017)

Held

The Court discussed objections relating to the admissibility of electronic evidence and the stage at which such objections should ordinarily be raised.

6. Shafhi Mohammad v. State of Himachal Pradesh (2018)

Held

The Supreme Court had carved out certain exceptions regarding the certificate requirement.

Significance

These observations were later clarified by the Constitution Bench in **Arjun Panditrao Khotkar**, which remains the leading authority on the subject.

Critical Analysis

Merits

- Recognizes technological developments in modern society.
- Facilitates proof of digital transactions and communications.
- Strengthens investigation of cybercrimes and electronic fraud.
- Encourages the use of scientific methods in judicial proceedings.
- Protects against manipulation through statutory safeguards.

Limitations

- Digital records are vulnerable to alteration and hacking.
 - Authentication may require technical expertise.
 - Compliance with procedural requirements can be complex.
 - Rapid technological developments may create new evidentiary challenges.
-

Examination-Oriented Points

- **Sections 61–63** of the Bharatiya Sakshya Adhiniyam, 2023 deal with the **admissibility of electronic or digital records**.
- Electronic records are recognized as **documentary evidence**.
- **Section 61** recognizes the admissibility of electronic or digital records subject to statutory conditions.
- **Section 62** prescribes the special procedure and safeguards for proving electronic records, including the requirement of a statutory certificate where applicable.
- **Section 63** deals with the proof and verification of electronic records.
- Electronic evidence includes **emails, WhatsApp chats, CCTV footage, digital photographs, computer files, cloud data, and digital signatures**.

- The authenticity, integrity, and reliability of the electronic record are essential for admissibility.
 - Leading authorities include **Anvar P.V. v. P.K. Basheer**, **Arjun Panditrao Khotkar v. Kailash Kushanrao Gorantyal**, **Tomaso Bruno v. State of Uttar Pradesh**, **Sonu @ Amar v. State of Haryana**, **Shafhi Mohammad v. State of Himachal Pradesh**, and **State (NCT of Delhi) v. Navjot Sandhu**.
-

Conclusion

Sections 61 to 63 of the Bharatiya Sakshya Adhiniyam, 2023 provide the legal framework for the admissibility of electronic and digital records in Indian courts. By treating electronic records as documentary evidence while prescribing specific safeguards for their authentication, the Act balances the growing importance of digital technology with the need to ensure reliability and prevent manipulation. In the digital era, these provisions play a crucial role in the effective administration of justice by enabling courts to rely on electronic evidence that is genuine, trustworthy, and proved in accordance with law.

Topic 4

Burden of Proof (Sections 104–114)

Introduction

One of the fundamental principles of the law of evidence is that **the person who asserts a fact must prove it**. Courts do not decide cases based on mere allegations, suspicion, or assumptions. Every fact relied upon by a party must ordinarily be established by admissible evidence.

This principle is known as the **Burden of Proof**.

The provisions relating to burden of proof are contained in **Sections 104 to 114 of the Bharatiya Sakshya Adhiniyam, 2023 (BSA)**. These provisions substantially correspond to **Sections 101 to 111 of the Indian Evidence Act, 1872**.

The doctrine ensures fairness by placing the obligation of proving facts upon the party who seeks the Court's judgment.

Meaning of Burden of Proof

Burden of Proof means:

The legal obligation of a party to establish the truth of the facts asserted by producing admissible evidence before the Court.

If the party having the burden fails to prove the required facts, the Court decides the issue against that party.

Object of the Doctrine

The objectives are:

- To ensure fairness in judicial proceedings.
 - To prevent frivolous claims.
 - To assist the Court in discovering the truth.
 - To allocate responsibility between the parties.
 - To promote certainty in the administration of justice.
-

General Rule

The general principle is:

"He who asserts must prove."

A party cannot merely allege a fact and expect the opposite party to disprove it.

Section 104 – Burden of Proof

Principle

Whoever desires the Court to give judgment regarding any legal right or liability depending upon the existence of certain facts must prove those facts.

Illustration

A alleges that B borrowed ₹5,00,000.

A must prove:

- The loan,
 - The amount,
 - The liability.
-

Section 105 – On Whom Burden of Proof Lies

The burden lies upon the person who would fail if **no evidence** were produced by either side.

Illustration

A files a suit claiming ownership of land.

If neither party produces evidence, A's claim fails.

Therefore, the burden initially lies upon A.

Legal Burden and Evidential Burden

Legal Burden

- Fixed by law.
 - Normally remains throughout the trial.
 - Usually rests upon the party asserting the claim.
-

Evidential Burden

- Shifts from one party to another during the trial.
 - Depends upon the evidence already produced.
-

Difference

Legal Burden	Evidential Burden
Fixed by law.	Changes during trial.
Normally remains constant.	Shifts according to evidence.
Never completely shifts.	Frequently shifts.

Section 106 – Burden Regarding Particular Facts

The burden of proving any particular fact lies upon the person who wishes the Court to believe in its existence.

Illustration

A alleges that B signed a contract.

A must prove the signature.

Section 107 – Burden to Prove Facts Especially Within Knowledge

When a fact is **especially within the knowledge** of a person, the burden of proving that fact lies upon that person.

Illustration

A is prosecuted for travelling without a railway ticket.

Whether A possessed a valid ticket is especially within A's knowledge.

The burden lies upon A.

Landmark Case

Shambhu Nath Mehra v. State of Ajmer (1956)

Held

Section 107 applies only to facts especially within the exclusive knowledge of the accused or the concerned person. It does not relieve the prosecution of its primary burden to prove guilt beyond reasonable doubt.

Section 108 – Burden to Prove Death of a Person Known to be Alive

If a person is shown to have been alive within the relevant period prescribed by law, the burden of proving that the person has died lies on the party asserting the death.

Section 109 – Burden to Prove that Person is Alive

Where it is shown that a person has **not been heard of for seven years** by those who would naturally have heard of him, the burden shifts to the person asserting that he is still alive.

Landmark Case

LIC of India v. Anuradha (2004)

Held

The Supreme Court held that after seven years' unexplained absence, only the fact of death may be presumed—not the exact date or circumstances of death.

Section 110 – Burden Regarding Relationship

Where the Court has to determine certain relationships or statuses recognized by law, the burden lies upon the person asserting such relationship.

Section 111 – Proof of Good Faith in Certain Transactions

Where good faith is in issue in transactions involving confidence or fiduciary relationships, the burden of proving good faith lies upon the person who occupied the position of confidence.

Examples

- Trustee
 - Guardian
 - Agent
 - Lawyer
 - Doctor
 - Spiritual adviser
-

Section 112 – Birth During Marriage

A child born during the continuance of a valid marriage, or within the legally prescribed period after its dissolution, carries a strong legal presumption of legitimacy, unless rebutted in accordance with law.

Landmark Case

Kamti Devi v. Poshni Ram (2001)

Held

The Supreme Court held that the statutory presumption regarding legitimacy is a strong one and cannot be displaced by mere suspicion.

Section 113 – Burden as to Particular Offences or Exceptions

Where an accused pleads a statutory exception (such as private defence, insanity, or other general exceptions under criminal law), the burden lies upon the accused to establish the applicability of that exception on the standard recognized by law.

Section 114 – Court May Presume Certain Facts

Section 114 authorizes the Court to draw reasonable presumptions based on:

- ordinary human conduct,
 - natural events,
 - business practices,
 - surrounding circumstances.
-

Illustration

A person found in possession of recently stolen property may be presumed to have received or retained it dishonestly unless he offers a satisfactory explanation.

Landmark Case Laws

1. Woolmington v. Director of Public Prosecutions (1935)

Principle

The prosecution bears the burden of proving the guilt of the accused beyond reasonable doubt.

2. Shambhu Nath Mehra v. State of Ajmer (1956)

Principle

Facts especially within the knowledge of a person must be proved by that person.

3. LIC of India v. Anuradha (2004)

Principle

Seven years' disappearance raises only a presumption of death, not of the exact time of death.

4. Kamti Devi v. Posh Ram (2001)

Principle

The presumption of legitimacy is one of the strongest presumptions known to law.

5. R. v. Lobell (1957)

Principle

The burden on an accused raising a statutory defence is ordinarily to establish it on the balance of probabilities, not beyond reasonable doubt.

Critical Analysis

Merits

- Promotes fairness in litigation.
- Prevents baseless allegations.
- Protects the presumption of innocence.
- Allocates responsibility logically.
- Ensures efficient judicial decision-making.

Limitations

- Gathering evidence may be difficult in some cases.
 - Technical burden rules may occasionally operate harshly.
 - Special statutory presumptions may shift burdens in exceptional cases.
-

Examination-Oriented Points

- **Burden of proof** means the legal obligation to prove facts asserted before the Court.
- The general rule is "**He who asserts must prove.**"
- **Section 104** lays down the basic rule regarding burden of proof.
- **Section 107** deals with facts especially within the knowledge of a person.
- **Section 109** provides for the presumption of death after seven years' disappearance.
- **Section 111** concerns proof of good faith in fiduciary relationships.
- **Section 112** provides the presumption regarding legitimacy of a child born during a valid marriage.

- **Section 114** empowers the Court to draw reasonable presumptions based on ordinary human conduct.
 - Leading cases include **Woolmington v. DPP**, **Shambhu Nath Mehra**, **LIC of India v. Anuradha**, and **Kamti Devi v. Poshi Ram**.
-

Conclusion

The doctrine of burden of proof forms the backbone of the law of evidence. Sections 104–114 of the Bharatiya Sakshya Adhiniyam, 2023 ensure that every party establishes the facts upon which its case depends while preserving the fundamental principle that the prosecution must ordinarily prove guilt beyond reasonable doubt. By also recognizing limited situations where the burden shifts, these provisions strike a balance between fairness, procedural efficiency, and the search for truth.

Topic 5

Presumptions

Introduction

A **presumption** is an inference that the law permits or requires the Court to draw from the existence of certain proved facts. Presumptions enable the Court to reach logical conclusions without requiring proof of every intermediate fact, thereby making judicial proceedings more efficient.

Under the **Bharatiya Sakshya Adhiniyam, 2023**, presumptions are reflected in provisions such as **Sections 4 (definitions of "may presume", "shall presume", and "conclusive proof")** and in various substantive provisions, particularly **Section 114**, where the Court may draw presumptions from ordinary human conduct and surrounding circumstances.

Meaning of Presumption

A **presumption** is:

A legal or logical inference that the Court draws from established facts until the contrary is proved or unless the law makes the inference conclusive.

Object of Presumptions

- To facilitate proof of facts.
- To avoid unnecessary evidence.
- To promote judicial efficiency.

- To reflect common human experience and probabilities.
 - To assist the Court where direct evidence is unavailable.
-

Kinds of Presumptions

1. May Presume

The Court **has discretion** to presume a fact or to call for proof.

Example

The Court may presume that a person found in possession of recently stolen property either stole it or received it dishonestly unless satisfactorily explained.

2. Shall Presume

The Court **must presume** the fact unless it is disproved.

The presumption is **rebuttable**.

3. Conclusive Proof

Where the Act declares one fact to be **conclusive proof** of another, no evidence is permitted to disprove it.

The presumption is **irrebuttable**.

Difference between the Three Types

May Presume	Shall Presume	Conclusive Proof
Discretionary.	Mandatory unless rebutted.	Absolute and irrebuttable.
Court may require proof. Opposite party may rebut it. No contrary evidence permitted.		

Statutory Presumptions under the BSA

Some important presumptions include:

- Presumption regarding possession of recently stolen property (Section 114).
- Presumption regarding legitimacy of a child born during a valid marriage (Section 112).

- Presumption of death after seven years' unexplained absence (Section 109).
 - Presumptions relating to official acts and regular course of business, where applicable.
-

Judicial Presumptions

Apart from statutory presumptions, courts may draw logical inferences from:

- Human conduct.
 - Natural events.
 - Common experience.
 - Course of business.
 - Surrounding circumstances.
-

Rebuttable and Irrebuttable Presumptions

Rebuttable Presumption

Can be disproved by evidence.

Example: Shall presume.

Irrebuttable Presumption

Cannot be disproved.

Example: Conclusive proof.

Landmark Case Laws

1. Woolmington v. Director of Public Prosecutions (1935)

Principle

The presumption of innocence remains the golden thread of criminal jurisprudence.

2. LIC of India v. Anuradha (2004)

Principle

Seven years' disappearance gives rise to a presumption of death but not as to the exact time of death.

3. Kamti Devi v. Posh Ram (2001)

Principle

The presumption of legitimacy under the law is extremely strong and may be displaced only by cogent evidence.

4. State of West Bengal v. Mir Mohammad Omar (2000)

Principle

Courts may draw reasonable presumptions under the law from proved circumstances and ordinary human conduct.

5. Narayan Govind Gavate v. State of Maharashtra (1977)

Principle

Presumptions are rules of evidence intended to aid the Court and must be applied in accordance with the statutory framework.

Critical Analysis

Merits

- Saves judicial time.
- Reduces unnecessary proof.
- Reflects common sense and human experience.
- Assists where direct evidence is unavailable.
- Promotes certainty in legal proceedings.

Limitations

- Incorrect presumptions may occasionally lead to injustice if not carefully applied.
 - Courts must distinguish between permissible inference and mere speculation.
 - Strong presumptions should always remain subject to the safeguards provided by law.
-

Examination-Oriented Points

- A **presumption** is a legal inference drawn from proved facts.
- The three statutory categories are **May Presume**, **Shall Presume**, and **Conclusive Proof**.
- **May Presume** is discretionary.

- **Shall Presume** is mandatory but rebuttable.
 - **Conclusive Proof** is absolute and irrebuttable.
 - **Section 114** empowers the Court to draw presumptions based on ordinary human conduct and surrounding circumstances.
 - Presumptions reduce the burden of proving facts that ordinarily follow from established facts.
 - Leading cases include **Woolmington v. DPP**, **LIC of India v. Anuradha**, **Kamti Devi v. Poshi Ram**, **State of West Bengal v. Mir Mohammad Omar**, and **Narayan Govind Gavate v. State of Maharashtra**.
-

Conclusion

Presumptions are indispensable rules of evidence that allow courts to infer the existence of certain facts from other established facts. The Bharatiya Sakshya Adhiniyam, 2023 recognizes both discretionary and mandatory presumptions while preserving the overarching principles of fairness and justice. Proper application of presumptions helps courts decide cases efficiently without compromising the rights of the parties, making them an essential component of modern evidence law.

UNIT – IV

Topic 1

The Principle of Estoppel (Sections 121–123)

Introduction

The **Principle of Estoppel** is one of the most important equitable doctrines in the law of evidence. It prevents a person from denying or contradicting a statement, representation, or conduct upon which another person has relied and acted to his detriment. The doctrine is founded on the principles of **equity, justice, good faith, and fairness**. Its object is to prevent fraud, dishonesty, and inconsistency in legal proceedings.

The provisions relating to **Estoppel** are contained in **Sections 121 to 123** of the **Bharatiya Sakshya Adhiniyam, 2023 (BSA)**, which substantially correspond to **Sections 115 to 117 of the Indian Evidence Act, 1872**.

The doctrine does **not create a legal right**; rather, it **prevents a party from denying an existing fact or representation** where such denial would operate unfairly against another who relied upon it.

Meaning of Estoppel

The word "**Estoppel**" is derived from the Old French word *estoupail*, meaning **to stop or prevent**.

In law, estoppel means:

A person who has, by his declaration, act, omission, or conduct, intentionally caused another person to believe a thing to be true and to act upon that belief, cannot afterwards deny the truth of that representation in any legal proceeding between them.

Object of the Doctrine

The objectives of estoppel are:

- To prevent fraud and dishonesty.
 - To ensure consistency in legal proceedings.
 - To protect persons who rely on representations made by others.
 - To promote fairness and equity.
 - To prevent injustice arising from contradictory conduct.
-

Essential Ingredients of Estoppel

For the doctrine of estoppel to apply, the following conditions must generally be satisfied:

1. Representation

There must be a representation by:

- words,
 - conduct,
 - silence (where there is a duty to speak).
-

2. Representation Must Relate to Existing Fact

The representation should ordinarily relate to an **existing or past fact**, not merely to a future intention or promise.

3. Intention or Expectation

The representation should be made with the intention or reasonable expectation that the other party will act upon it.

4. Reliance

The other party must have actually relied upon the representation.

5. Change of Position

The party relying upon the representation must have altered his position or suffered prejudice because of such reliance.

6. Injustice

It would be inequitable to permit the maker of the representation to deny its truth.

Section 121 – General Rule of Estoppel

Statutory Principle

Where one person has, by his declaration, act, or omission, intentionally caused or permitted another to believe a thing to be true and to act upon such belief, neither he nor his representative shall be allowed, in any suit or proceeding between them, to deny the truth of that thing.

Illustration

A tells B that a piece of land belongs to him and encourages B to purchase it.

Believing this representation, B purchases the land and spends money on improvements.

Later, A cannot deny his earlier representation to the prejudice of B.

Essentials of Section 121

- Representation by one party.
 - Reliance by another party.
 - Alteration of position.
 - Subsequent denial by the maker.
 - Resulting injustice.
-

Nature of Estoppel

Estoppel is:

- A rule of evidence.
 - A rule of equity.
 - A shield, not a sword.
 - Personal between the parties.
 - Preventive, not creative.
-

Important Principle

Estoppel does not create ownership or title.

It merely prevents a person from denying what he has previously represented.

Section 122 – Estoppel of Tenant and Licensee

Principle

A tenant or licensee who has been let into possession by the landlord or licensor **cannot deny the title of that landlord or licensor** during the continuance of the tenancy or licence.

Object

The object is to maintain certainty and stability in landlord–tenant and licensor–licensee relationships.

Illustration

A takes a house on rent from B.

During the tenancy, A cannot claim that B never had title to the house.

If A wishes to challenge the title, he must first surrender possession.

Why This Rule Exists

If tenants were allowed to dispute the landlord's title while continuing in possession:

- contractual relationships would become uncertain,
- litigation would increase,

- possession could be wrongfully retained.
-

Landmark Case

Sri Ram Pasricha v. Jagannath (1976)

Held

The Supreme Court held that a tenant is estopped from denying the landlord's title during the continuance of the tenancy.

Section 123 – Estoppel of Acceptor of Bill of Exchange, Bailee and Licensee

(A) Acceptor of Bill of Exchange

A person who accepts a bill of exchange cannot deny:

- that the drawer had authority to draw it,
 - or the validity of the bill at the time of acceptance.
-

(B) Bailee

A bailee cannot deny that the bailor had authority to deliver the goods at the time of the bailment.

Example

A gives his car to B for repairs.

B cannot later refuse to return the car by denying A's authority to deliver it at the commencement of the bailment.

(C) Licensee

Similarly, a licensee cannot deny the title of the licensor while the licence subsists.

Illustration

A deposits jewellery with B for safe custody.

B cannot subsequently claim that A had no right to deliver the jewellery.

Kinds of Estoppel

Although the Bharatiya Sakshya Adhiniyam specifically deals with certain forms of estoppel, Indian law recognizes several broader categories developed through judicial decisions.

1. Estoppel by Representation

Arises when one person makes a representation of fact upon which another relies.

2. Estoppel by Conduct

Arises from conduct rather than express words.

3. Estoppel by Record

Arises from judgments of competent courts.

A matter finally decided cannot ordinarily be reopened between the same parties.

4. Promissory Estoppel

Developed by courts as an equitable doctrine.

Where one party makes a clear promise intending it to be acted upon, and the other party acts on it, the promisor may be prevented from going back on the promise, even in the absence of a formal contract, subject to legal limitations.

5. Equitable Estoppel

A broader principle preventing unfair conduct where equity demands consistency.

Estoppel and Promissory Estoppel

Estoppel	Promissory Estoppel
Usually based on representation of existing fact.	Based on a clear promise regarding future conduct.
Expressly recognized under the BSA.	Developed mainly through judicial decisions.
Operates as a rule of evidence.	Operates as an equitable doctrine.

Estoppel and Waiver

Estoppel

Prevents denial of earlier representation. Intentional relinquishment of a known right.

Requires reliance by another party.

Waiver

May not require reliance in every case.

Exceptions to Estoppel

The doctrine does **not** apply in the following situations:

- Against statutes or statutory provisions.
 - Against the Constitution.
 - Against legislative functions.
 - Against acts done without jurisdiction.
 - Against matters involving public policy.
 - Where the representation was induced by fraud or mistake.
 - Where both parties knew the true facts.
-

Important Maxims

Allegans Contraria Non Est Audiendus

A person alleging contradictory facts should not be heard.

Nemo Contra Factum Suum Venire Potest

No person can go against his own previous conduct.

Landmark Case Laws

1. Pickard v. Sears (1837)

Held

This English case laid down the classical principle of estoppel by representation. A person who induces another to act on a representation cannot afterwards deny it.

2. Central London Property Trust Ltd. v. High Trees House Ltd. (1947)

Held

Lord Denning recognized and developed the doctrine of **Promissory Estoppel** in modern English law.

Significance

The case established that a clear promise intended to affect legal relations may be binding where it has been relied upon.

3. Motilal Padampat Sugar Mills Co. Ltd. v. State of Uttar Pradesh (1979)

Held

The Supreme Court firmly recognized the doctrine of **Promissory Estoppel** in India.

Principle

The Government may be bound by its promise where justice, equity, and good conscience require, unless overriding public interest or statutory provisions dictate otherwise.

4. Union of India v. Anglo Afghan Agencies (1968)

Held

The Government was held bound by its representation where the affected party had relied upon it.

Significance

One of the earliest Indian decisions applying the doctrine of promissory estoppel against the Government.

5. Sri Ram Pasricha v. Jagannath (1976)

Held

A tenant cannot deny the landlord's title during the subsistence of the tenancy.

6. B.L. Sreedhar v. K.M. Munireddy (2003)

Held

The Supreme Court observed that estoppel is founded upon fairness and good conscience and prevents a party from acting inconsistently with his earlier conduct where another has relied upon it.

Critical Analysis

Merits

- Promotes honesty and consistency.
 - Prevents fraud and abuse of legal process.
 - Protects persons acting in good faith.
 - Encourages certainty in commercial and property transactions.
 - Strengthens equitable justice.
-

Limitations

- Cannot override statutory provisions.
 - Cannot legalize an illegal act.
 - Does not create ownership or legal rights.
 - Operates only between the concerned parties.
 - Courts apply it cautiously to avoid defeating public interest.
-

Examination-Oriented Points

- **Sections 121–123** of the Bharatiya Sakshya Adhiniyam, 2023 deal with the **Principle of Estoppel**.
- Estoppel prevents a person from denying a representation previously made where another has relied upon it.
- The essential ingredients are **representation, reliance, change of position, and resulting injustice**.
- **Section 121** embodies the general rule of estoppel by representation.
- **Section 122** prohibits a tenant or licensee from denying the landlord's or licensor's title during the continuance of the tenancy or licence.
- **Section 123** applies estoppel to the **acceptor of a bill of exchange**, the **bailee**, and the **licensee**.
- Estoppel is a **rule of evidence and equity**, operating as a **shield rather than a sword**.

- Estoppel **does not create title**; it only prevents inconsistent denial of an earlier representation.
 - Promissory estoppel is a judicially developed doctrine distinct from, though related to, statutory estoppel.
 - Important cases include **Pickard v. Sears (1837)**, **Central London Property Trust Ltd. v. High Trees House Ltd. (1947)**, **Union of India v. Anglo Afghan Agencies (1968)**, **Sri Ram Pasricha v. Jagannath (1976)**, **Motilal Padampat Sugar Mills Co. Ltd. v. State of Uttar Pradesh (1979)**, and **B.L. Sreedhar v. K.M. Munireddy (2003)**.
-

Conclusion

The doctrine of estoppel, embodied in Sections 121–123 of the Bharatiya Sakshya Adhiniyam, 2023, is a fundamental principle designed to uphold honesty, fairness, and consistency in legal relations. It prevents parties from acting inconsistently with their previous representations when others have relied upon them to their detriment. Although it does not create substantive rights, it serves as an important evidentiary and equitable safeguard against fraud and injustice. Through statutory provisions and judicial development—particularly in the field of promissory estoppel—the doctrine continues to play a vital role in ensuring fairness in both private and public law disputes.

Topic 2

Privileged Communications – Communication During Marriage, Professional Communications Between Lawyer and Client, and Other Privileged Communications (Sections 128–134)

Introduction

The administration of justice requires that certain relationships be based on **absolute trust, confidence, and confidentiality**. If every private communication could be disclosed in court, individuals would hesitate to communicate freely with their spouses, advocates, or other protected persons. To preserve these confidential relationships, the **Bharatiya Sakshya Adhiniyam, 2023 (BSA)** recognizes the doctrine of **Privileged Communications**.

The provisions relating to privileged communications are contained in **Sections 128 to 134** of the Bharatiya Sakshya Adhiniyam, 2023, corresponding substantially to **Sections 122 to 129 of the Indian Evidence Act, 1872**.

The doctrine seeks to balance two competing interests:

- **The discovery of truth by the Court**, and
 - **The protection of confidential relationships that society considers essential.**
-

Meaning of Privileged Communication

A **Privileged Communication** is:

A communication which the law protects from compulsory disclosure in judicial proceedings, even if it is relevant to the case.

The privilege belongs to the person protected by law and, except in circumstances recognized by law, the communication cannot be disclosed without that person's consent.

Object of Privileged Communication

The objectives are:

- To preserve confidential relationships.
 - To encourage frank and honest communication.
 - To protect privacy.
 - To ensure effective legal representation.
 - To strengthen public confidence in the justice system.
-

Kinds of Privileged Communications

Under Sections **128–134**, the principal privileges are:

- Marital Communications.
 - Official Communications.
 - Information relating to commission of offences (identity of informers in appropriate cases).
 - Professional Communications between Advocate and Client.
 - Protection against compelled disclosure by legal advisers.
-

Section 128 – Communications During Marriage

Principle

No person who is or has been married shall be compelled to disclose any communication made to him or her by the spouse during the marriage.

The privilege continues **even after the marriage has ended** by divorce or death.

Essentials

For the privilege to apply:

1. There must be a valid marriage.
 2. The communication must have been made during the subsistence of the marriage.
 3. It must be a communication between spouses.
 4. The communication must not fall within any statutory exception.
-

Nature of Protection

The privilege protects:

- Spoken conversations.
- Written communications.
- Letters.
- Emails.
- Digital messages.
- Other confidential communications between spouses.

The protection is available whether the communication is oral or electronic.

What is Not Protected?

The privilege does **not** ordinarily extend to:

- Acts observed by the spouse.
- Conduct witnessed independently.
- Facts learned from sources other than marital communication.

For example, if a wife personally sees her husband commit an offence, her testimony about what she **saw** is distinct from a confidential communication made by him.

Exceptions

Disclosure may be permitted:

- With the consent of the communicating spouse.
- In proceedings between the spouses themselves (such as matrimonial disputes).

- In proceedings where one spouse is prosecuted for an offence against the other, where permitted by law.
-

Illustration

Husband tells his wife:

"I have hidden important documents in my office."

The wife cannot ordinarily be compelled to disclose this confidential communication in court without the husband's consent, unless a statutory exception applies.

Landmark Case

Ram Bharosey v. State of Uttar Pradesh (1954)

Held

The Supreme Court held that only **communications** made during marriage are protected. Mere acts or conduct personally observed by the spouse are not covered by the privilege.

Section 129 – Official Communications

Principle

A public officer shall not be compelled to disclose confidential official communications made to him in official confidence if the competent authority considers that disclosure would harm the public interest.

Object

- To protect public administration.
 - To safeguard confidential governmental affairs.
 - To preserve national and public interests.
-

Examples

- Confidential government reports.
- Internal security communications.
- Intelligence information.

- Sensitive diplomatic correspondence.
-

Public Interest Immunity

The privilege is based on **public interest**, not on the personal interest of the public officer.

The Court may examine whether the claim of privilege is legally sustainable.

Landmark Case

State of Punjab v. Sodhi Sukhdev Singh (1961)

Held

The Supreme Court held that privilege regarding official communications exists to protect public interest and not to shield administrative mistakes or wrongdoing.

Section 130 – Information as to Commission of Offences

Principle

A Magistrate, Police Officer, or other authorized public authority may, in appropriate circumstances, decline to disclose the identity of a person who furnished information regarding the commission of an offence.

Object

- To protect informers.
 - To encourage reporting of offences.
 - To assist criminal investigations.
 - To maintain public confidence in law enforcement.
-

Importance

If informers were routinely exposed, people would hesitate to report crimes.

Section 131 – Professional Communications Between Lawyer and Client

Principle

An Advocate (or legal adviser) shall not disclose any communication made by or on behalf of the client in the course of professional employment without the client's express consent.

This is one of the most significant privileges recognized by law.

Object

The privilege enables clients to consult their lawyers freely and honestly without fear that confidential information will later be disclosed in court.

Communications Protected

The privilege covers:

- Oral discussions.
 - Written advice.
 - Emails.
 - Legal opinions.
 - Case strategies.
 - Draft pleadings.
 - Documents shared for obtaining legal advice.
-

Conditions

The communication must:

- Be made to a legal adviser.
 - Be made in the course of professional employment.
 - Be confidential.
 - Be for the purpose of obtaining or giving legal advice.
-

Exceptions

The privilege does **not** apply where:

1. Communication is Made in Furtherance of an Illegal Purpose

Example:

A client seeks advice on how to destroy evidence.

Such communication is not protected.

2. Crime or Fraud After Employment Begins

Facts observed by the advocate showing that a crime or fraud has been committed after the commencement of professional employment are not protected.

3. Client Waives the Privilege

The client may expressly consent to disclosure.

Illustration

A client privately tells his advocate:

"I entered into the contract but did not breach it."

The advocate cannot disclose this confidential statement without the client's consent.

Landmark Case

M. Y. Shareef v. Judges of the High Court of Nagpur (1955)

Held

The Supreme Court emphasized that professional privilege is essential for the proper administration of justice and protects confidential communications made for obtaining legal advice.

Section 132 – Protection Extends to Interpreters, Clerks and Assistants

The privilege applicable to advocates also extends to:

- Interpreters.
- Clerks.
- Secretaries.
- Stenographers.
- Junior associates.
- Other persons assisting the advocate in professional employment.

Object

Otherwise, confidentiality could easily be defeated by compelling subordinate staff to disclose privileged communications.

Section 133 – Privilege Not Waived by Giving Evidence

A client does **not** lose professional privilege merely because:

- he appears as a witness,
- or gives evidence in court.

Privilege continues unless the client voluntarily discloses or waives the confidential communication.

Section 134 – Confidential Communications with Legal Advisers

The Court shall not compel a person to disclose confidential communications made to his legal adviser unless the person himself chooses to disclose them.

Thus, the privilege belongs primarily to the **client**, not the advocate.

Difference Between Marital Privilege and Legal Professional Privilege

Marital Privilege

Between husband and wife.

Protects communications made during marriage.

Continues after marriage ends.

Subject to statutory exceptions.

Legal Professional Privilege

Between advocate and client.

Protects communications made for legal advice.

Continues after the professional relationship ends unless waived.

Subject to crime-fraud and other recognized exceptions.

Difference Between Public Interest Privilege and Advocate–Client Privilege

Public Interest Privilege

Protects government confidentiality.

Advocate–Client Privilege

Protects confidential legal advice.

Public Interest Privilege

Exists for public interest.

Claimed by competent public authority. Waived only by the client.

Advocate–Client Privilege

Exists for the client's benefit.

Importance of Privileged Communications

The doctrine:

- Promotes honest legal consultation.
 - Preserves marital confidence.
 - Protects public administration.
 - Encourages reporting of crime.
 - Strengthens confidence in the justice system.
-

Landmark Case Laws**1. Ram Bharosey v. State of Uttar Pradesh (1954)****Held**

Only communications between spouses are privileged; acts independently observed are not.

2. State of Punjab v. Sodhi Sukhdev Singh (1961)**Held**

Official privilege exists to protect public interest, not governmental convenience.

3. M. Y. Shareef v. Judges of the High Court of Nagpur (1955)**Held**

Legal professional privilege is essential for the proper administration of justice.

4. R. v. Derby Magistrates' Court, Ex parte B (1996)**Held**

The House of Lords held that legal professional privilege is a fundamental condition for the administration of justice and should be protected except where law provides otherwise.

5. Three Rivers District Council v. Governor and Company of the Bank of England (No. 6) (2004)

Held

The House of Lords elaborated the scope of legal advice privilege and emphasized the importance of confidential legal communications.

6. District Registrar and Collector v. Canara Bank (2005)

Held

The Supreme Court of India recognized privacy and confidentiality in banking and legal records, observing that such confidentiality must be respected except where disclosure is authorized by law.

Critical Analysis

Merits

- Protects confidential relationships.
 - Encourages complete and truthful communication.
 - Strengthens legal representation.
 - Safeguards marital harmony.
 - Protects public administration and law enforcement.
-

Limitations

- May occasionally withhold relevant evidence from the Court.
 - Privilege cannot be used to conceal ongoing crimes or fraud.
 - Courts must balance confidentiality with the interests of justice.
 - Public interest may justify disclosure in exceptional cases recognized by law.
-

Examination-Oriented Points

- **Sections 128–134** of the Bharatiya Sakshya Adhiniyam, 2023 deal with **privileged communications**.
- **Section 128** protects confidential communications made during marriage.
- **Section 129** protects official communications where disclosure would harm public interest.
- **Section 130** protects, in appropriate cases, the identity of persons furnishing information regarding offences.
- **Section 131** provides **legal professional privilege** between advocate and client.
- **Section 132** extends that privilege to interpreters, clerks, assistants, and similar persons.
- **Section 133** states that privilege is not waived merely because the client gives evidence.
- **Section 134** prevents compulsory disclosure of confidential communications with legal advisers without the client's consent.
- The **crime-fraud exception** prevents privilege from being used to facilitate illegal purposes.
- Leading cases include **Ram Bharosey v. State of Uttar Pradesh**, **State of Punjab v. Sodhi Sukhdev Singh**, **M. Y. Shareef v. Judges of the High Court of Nagpur**, **R. v. Derby Magistrates' Court, Ex parte B**, **Three Rivers District Council v. Bank of England (No. 6)**, and **District Registrar and Collector v. Canara Bank**.

Conclusion

Sections 128 to 134 of the Bharatiya Sakshya Adhiniyam, 2023 recognize the importance of confidentiality in relationships that are essential to society and the justice system. By protecting communications between spouses, advocates and clients, and certain official communications, these provisions promote trust, privacy, and effective legal representation while ensuring that such privileges are not misused to conceal fraud or crime. Properly applied, the doctrine of privileged communications strikes a careful balance between the search for truth and the protection of relationships that the law considers worthy of special confidence.

Topic 3

Accomplice (Section 138 and Section 119 Illustration)

Introduction

In criminal law, offences are often committed by more than one person. Sometimes, one of the participants in the crime agrees to testify against the others. Such a person is known as an **Accomplice**. Since an accomplice is himself involved in the commission of the offence, his evidence is viewed with

caution. However, if found reliable and corroborated in material particulars, it may form the basis of conviction.

The law relating to accomplice evidence is contained in **Section 138 of the Bharatiya Sakshya Adhiniyam, 2023**, read with **Illustration (b) to Section 119**. These provisions substantially correspond to **Section 133 and Illustration (b) to Section 114 of the Indian Evidence Act, 1872**.

Meaning of Accomplice

An **Accomplice** is:

A person who voluntarily participates in the commission of an offence and later gives evidence against the other accused persons.

An accomplice may be:

- Principal offender.
 - Co-accused.
 - Abettor.
 - Conspirator.
 - A person who knowingly assists in the commission of the offence.
-

Who is an Accomplice?

A person becomes an accomplice if he:

- Participated in the crime.
 - Aided or abetted the offence.
 - Assisted before or after the offence with guilty knowledge.
 - Is legally liable for the same offence.
-

Examples

- A and B jointly commit robbery. B later becomes a prosecution witness against A.
 - A conspirator in a corruption case turns **approver** and testifies against the remaining conspirators.
 - A person assisting in transporting stolen goods with knowledge that they are stolen.
-

Object of the Rule

The law relating to accomplice evidence seeks to:

- Detect organized crime.
 - Punish all offenders.
 - Encourage insiders to reveal the truth.
 - Prevent miscarriage of justice by insisting on caution and corroboration.
-

Section 138 – Accomplice

Statutory Principle

Section 138 provides:

An accomplice is a competent witness against an accused person, and a conviction is not illegal merely because it proceeds upon the uncorroborated testimony of an accomplice.

Thus:

- An accomplice **is competent** to testify.
 - A conviction based solely on accomplice evidence is **not illegal**.
 - As a matter of judicial practice, courts ordinarily seek **independent corroboration** before relying on such testimony.
-

Why is Corroboration Required?

An accomplice may:

- Shift blame to save himself.
- Expect pardon or leniency.
- Have personal motives.
- Give false evidence to protect others.

Therefore, courts insist upon corroboration as a **rule of prudence**, though not an absolute rule of law.

Section 119 – Illustration (b)

Illustration (b) to Section 119 embodies the well-established judicial principle that:

The Court may presume that an accomplice is unworthy of credit unless he is corroborated in material particulars.

This is a "**may presume**" provision, meaning the Court has discretion, but long-standing judicial practice strongly favors corroboration.

Nature of Corroboration

Corroboration should:

- Be independent of the accomplice's testimony.
 - Connect the accused with the offence.
 - Relate to material particulars.
 - Inspire confidence in the truthfulness of the accomplice.
-

What is Material Corroboration?

Corroboration must support:

- Identity of the accused.
- Participation in the crime.
- Essential facts connecting the accused with the offence.

It need not confirm every minute detail.

Sources of Corroboration

Corroboration may come from:

- Independent eyewitnesses.
- CCTV footage.
- Recovery of stolen property.
- Scientific or forensic evidence.
- Fingerprints.
- DNA evidence.
- Electronic records.
- Documentary evidence.

- Circumstantial evidence.

Illustration

A and B commit burglary.

B becomes an approver and states that A broke open the house.

Police recover the stolen articles from A's possession.

The recovery serves as independent corroboration of B's testimony.

Competency vs Credibility

Competency

Whether the witness is legally permitted to testify.

Accomplice is competent.

Credibility

Whether the testimony is trustworthy.

His credibility is tested through corroboration and cross-examination.

Rule of Law and Rule of Prudence

Rule of Law

Conviction on uncorroborated accomplice evidence is not illegal.

Rule of Prudence

Courts generally insist on corroboration before acting upon such evidence.

Types of Accomplices

- Principal offender.
 - Abettor.
 - Conspirator.
 - Approver.
 - Receiver of stolen property (where legally treated as participant).
-

Approver

An **Approver** is an accomplice who is granted pardon on the condition that he makes a full and true disclosure of all material facts relating to the offence.

The provisions regarding pardon are contained in the **Bharatiya Nagarik Suraksha Sanhita, 2023 (BNSS)**, while the evidentiary value of the approver's testimony is governed by the **Bharatiya Sakshya Adhiniyam, 2023**.

Landmark Case Laws

1. Rameshwar v. State of Rajasthan (1952)

Held

The Supreme Court held that although conviction on uncorroborated accomplice evidence is legally permissible, courts ordinarily require corroboration as a matter of prudence.

2. Sarwan Singh Rattan Singh v. State of Punjab (1957)

Held

Corroboration must connect the accused with the commission of the offence and not merely prove that an offence occurred.

3. Haroom Haji Abdulla v. State of Maharashtra (1968)

Held

The corroboration required need not extend to every detail but must relate to material particulars implicating the accused.

4. Dagdu v. State of Maharashtra (1977)

Held

The Supreme Court reiterated that accomplice evidence should be received with caution and ordinarily requires independent corroboration.

5. State (Delhi Administration) v. Jagjit Singh (1989)

Held

Evidence of an approver can form the basis of conviction if it is trustworthy and corroborated in material particulars.

Critical Analysis

Merits

- Helps uncover organized crime.
- Assists prosecution in conspiracy cases.
- Enables conviction where direct evidence is scarce.
- Encourages offenders to disclose the truth.

Limitations

- Accomplices may falsely implicate others.
- They may testify to secure pardon or reduced punishment.
- Their evidence requires careful judicial scrutiny.

Examination-Oriented Points

- **Section 138** declares that an accomplice is a **competent witness**.
- A conviction based solely on accomplice evidence is **not illegal**.
- **Illustration (b) to Section 119** embodies the principle that an accomplice is generally considered unreliable unless corroborated.
- Corroboration is a **rule of prudence**, not an absolute rule of law.
- Independent corroboration should connect the accused with the offence.
- Important cases include **Rameshwar v. State of Rajasthan**, **Sarwan Singh Rattan Singh v. State of Punjab**, **Haroom Haji Abdulla v. State of Maharashtra**, **Dagdu v. State of Maharashtra**, and **State (Delhi Administration) v. Jagjit Singh**.

Conclusion

The law relating to accomplice evidence under the Bharatiya Sakshya Adhiniyam, 2023 seeks to balance the need to uncover crime with the risk of false implication. While Section 138 recognizes the competence of an accomplice as a witness, Illustration (b) to Section 119 emphasizes judicial caution by encouraging independent corroboration. The combined effect of these provisions ensures that convictions are based on reliable and trustworthy evidence while enabling the prosecution to use insider testimony in appropriate cases.

Topic 4

Examination of Witnesses (Sections 140–165)

Introduction

The testimony of witnesses is one of the most important means of proving facts in judicial proceedings. To ensure that evidence is presented fairly and truthfully, the **Bharatiya Sakshya Adhiniyam, 2023 (BSA)** prescribes detailed rules governing the examination of witnesses.

These provisions are contained in **Sections 140–165**, corresponding substantially to **Sections 135–166 of the Indian Evidence Act, 1872**.

The purpose of these provisions is to:

- discover the truth,
 - ensure fairness,
 - protect the rights of parties,
 - enable effective cross-examination,
 - and assist the Court in arriving at a just decision.
-

Meaning of Examination of Witnesses

Examination of Witnesses means:

The legal process through which witnesses are questioned before the Court to prove or disprove relevant facts.

The examination takes place under the supervision of the Court and according to the procedure prescribed by law.

Order of Examination (Section 142)

A witness is examined in three stages:

1. **Examination-in-Chief**
 2. **Cross-Examination**
 3. **Re-Examination**
-

1. Examination-in-Chief

Meaning

Examination-in-chief is the examination of a witness by the party who calls him.

Object

- To present the witness's version.
 - To prove the facts supporting that party's case.
-

Rule

Leading questions are generally **not permitted** except with the Court's permission or on introductory or undisputed matters.

2. Cross-Examination

Meaning

Cross-examination is the examination of a witness by the opposite party.

Object

- To test credibility.
 - To discover the truth.
 - To expose contradictions.
 - To test memory and perception.
 - To impeach credibility where appropriate.
-

Importance

Cross-examination is often described as:

The greatest legal engine ever invented for the discovery of truth.

Leading Questions in Cross-Examination

Leading questions are generally **permitted** during cross-examination.

3. Re-Examination

Meaning

Re-examination is conducted by the party who originally called the witness after cross-examination.

Object

- To clarify ambiguities.
- To explain matters arising during cross-examination.

It is **not** meant to introduce entirely new evidence unless the Court permits.

Section 140 – Order of Production and Examination

The order in which witnesses are produced and examined is generally regulated by:

- procedural law (BNSS/CPC),
 - or the discretion of the Court where necessary.
-

Leading Questions

Meaning

A **Leading Question** suggests its own answer.

Example:

"You saw the accused running away, didn't you?"

When Allowed?

Stage	Leading Questions
Examination-in-Chief	Generally No
Cross-Examination	Yes
Re-Examination	Generally No (unless permitted)

Hostile Witness

A **Hostile Witness** is one who:

- becomes adverse to the party calling him,
- suppresses truth,
- gives inconsistent evidence,
- or intentionally departs from earlier statements.

With the Court's permission, the party calling such a witness may cross-examine him.

Refreshing Memory

A witness may, with the permission of the Court and subject to the Act, refresh his memory by referring to contemporaneous writings or documents made at the relevant time or soon thereafter.

Production of Documents

Where a witness is summoned to produce documents:

- production of the document does not automatically make it admissible;
 - admissibility is determined according to the law of evidence.
-

Judge's Power (Section 165)

One of the most important provisions.

The Judge may:

- ask any question,
- at any stage,
- to any witness,
- about any relevant or even apparently irrelevant fact,

if it is necessary for discovering the truth.

However, the final judgment must be based on legally admissible evidence.

Importance of Section 165

It empowers the Judge to:

- remove ambiguities,
 - clarify inconsistencies,
 - prevent injustice,
 - discover the truth,
 - ensure a fair trial.
-

Illustration

During cross-examination, a witness gives contradictory answers regarding the date of the incident.

The Judge may directly question the witness to clarify the discrepancy.

Rights of the Parties

Each party has the right to:

- examine witnesses,
 - cross-examine adverse witnesses,
 - re-examine where necessary,
 - object to inadmissible questions,
 - challenge credibility.
-

Duties of the Court

The Court must:

- ensure fairness,
 - prevent harassment,
 - exclude irrelevant evidence,
 - protect vulnerable witnesses,
 - maintain judicial impartiality.
-

Importance of Cross-Examination

Cross-examination helps to:

- discover truth,
 - expose falsehood,
 - test reliability,
 - reveal inconsistencies,
 - assess credibility.
-

Landmark Case Laws

1. State of Rajasthan v. Ani (1997)

Held

Cross-examination is a valuable safeguard for ensuring a fair trial and testing the credibility of witnesses.

2. Vinod Kumar v. State of Punjab (2015)

Held

The Supreme Court emphasized that effective cross-examination is an integral component of a fair criminal trial.

3. Sat Paul v. Delhi Administration (1976)

Held

The Court explained the principles relating to hostile witnesses and held that the evidence of a hostile witness is not to be rejected in toto; the reliable portion may still be accepted.

4. Koli Lakhmanbhai Chanabhai v. State of Gujarat (1999)

Held

The testimony of a hostile witness may be relied upon to the extent that it is found credible and corroborated by other evidence.

5. Ram Chander v. State of Haryana (1981)

Held

The Supreme Court emphasized the wide powers of the Judge under the corresponding provision relating to questioning witnesses to discover the truth.

6. Zahira Habibullah Sheikh v. State of Gujarat (Best Bakery Case) (2004)

Held

The Supreme Court observed that the trial Judge has a duty to actively ensure that justice is done and truth is brought before the Court, including by exercising appropriate powers to question witnesses.

Critical Analysis

Merits

- Ensures fairness in trials.
- Protects the rights of both parties.
- Strengthens judicial fact-finding.
- Facilitates discovery of truth.
- Prevents false testimony from going untested.

Limitations

- Witnesses may turn hostile.
 - Cross-examination can sometimes be misused to intimidate witnesses.
 - Delay in examination may affect memory and accuracy.
 - Courts must balance rigorous questioning with protection of vulnerable witnesses.
-

Examination-Oriented Points

- **Sections 140–165** regulate the **examination of witnesses**.
- The three stages are **Examination-in-Chief**, **Cross-Examination**, and **Re-Examination**.
- **Leading questions** are generally not permitted in examination-in-chief but are ordinarily allowed in cross-examination.
- A **hostile witness** may be cross-examined by the party calling him with the Court's permission.
- **Section 165** confers wide powers on the Judge to question witnesses for discovering the truth.
- Cross-examination is a fundamental safeguard for testing the credibility of witnesses.

- Important cases include **State of Rajasthan v. Ani**, **Vinod Kumar v. State of Punjab**, **Sat Paul v. Delhi Administration**, **Koli Lakhmanbhai Chanabhai v. State of Gujarat**, **Ram Chander v. State of Haryana**, and **Zahira Habibullah Sheikh v. State of Gujarat**.
-

Conclusion

Sections 140–165 of the Bharatiya Sakshya Adhiniyam, 2023 establish a comprehensive framework for the examination of witnesses. By regulating examination-in-chief, cross-examination, re-examination, leading questions, hostile witnesses, and the Judge's powers, these provisions ensure that evidence is tested thoroughly and fairly. Together, they play a central role in enabling courts to discover the truth while safeguarding the rights of the parties and upholding the principles of natural justice.